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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

08/19/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEFENDANT CSAA INSURANCE
EXCHANGE'S REPLY TO PLAINTIFF'S
OPPOSITION TO DEFENDANT'S
MOTION TO DECLARE PLAINTIFF A
VEXATIOUS LITIGANT**

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant CSAA
4 INSURANCE EXCHANGE (collectively "Defendant"). This declaration is submitted in support of
5 Defendant's Reply to Plaintiffs Opposition to Defendant's Motion to Declare Plaintiff a Vexatious
6 Litigant. The following facts are within my personal knowledge and, if called as a witness herein, I
7 can and will competently testify thereto.

8 2. Attached hereto as **Exhibit A** are true and correct copies of email correspondences
9 that Plaintiff has sent to my office.

10 3. Attached hereto as **Exhibit B** is a true and correct copy of a "Spot Fund" post,
11 organized by Plaintiff Franciscus Dylan Rosario, in an effort to fundraise on his own behalf.

12 I declare under the penalty of perjury under the laws of the State of California that the
13 foregoing is true and correct, and that this declaration was executed on August 19, 2026, at
14 Sacramento, California.

15 *Tyler J. O'Connell*
16 Tyler J. O'Connell
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EXHIBIT A

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Friday, August 7, 2026 1:53 PM
To: Morrissey, Rebekah; pnavaratnasingham@psalaw.net; Tyler O'Connell; Dylan Rosario; Serena Blithe; Veronica Jackson; Maria Reyes; Chad S. Tapp; Stephanie Hengl; Alberta Reyna; Rachael McGregor; Bruce.Carmichael@csaa.com; Steve.Derenzo@csaa.com
Cc: Dylan Rosario
Subject: DRAFT PLAINTIFF APPEALS REPLY.

Follow Up Flag: Follow up
Flag Status: Flagged

External email

Rebeka,

I recognize that you no longer have the standing or procedural capacity to argue, having squandered your sole opportunity to block this appeal on a completely fabricated waiver defense. Because there is zero detriment to laying my cards on the table, I am sharing this courtesy preview of my draft reply before its formal filing next week. Do not let minor typographical oversights prematurely lift your spirits; the legal authorities are verified, and the outcome remains inevitable. You are left merely to watch this crisis approach in agonizing slow motion wreck after dragging this out for five years in violation of the California Insurance Code.

Your affirmative defenses are completely gutted. Look at Exhibit 500, which Priya and Alberta themselves submitted to the jury: the record clearly establishes that I was struck from behind while in the crosswalk. I know how desperately they wanted to put words in my mouth and fabricate an admission that I was "riding" a vehicle in the wrong direction, but anyone watching the bodycam video closely and listening to my actual answers can see that no such admission exists.

It is remarkable how Priya and Alberta repeatedly manufacture non-existent "admissions" out of thin air. It turns out defense counsel does not need artificial intelligence to hallucinate; you can just ask Alberta and Priya, as they generate enough legal hallucinations on their own.

More critically, Alberta's own signed 2024 subpoena, paired with Dolan Law's sworn testimony confirming service, permanently locks their deceit onto the judicial record. Representing to the tribunal that this evidence was of "unknown provenance" when Alberta personally subpoenaed it constitutes a direct breach of the mandatory duty of candor (California Rules of Professional Conduct, Rule 3.3).

Under the doctrine of judicial estoppel, you cannot un-ring that bell. In upcoming proceedings, I will formally Request Judicial Notice (Cal. Evid. Code § 452) on Alberta's subpoena. Both Priya and Alberta can look forward to answering to the State Bar under California Business & Professions Code § 6106 for acts involving moral turpitude and dishonesty, as their violation of the bar rules are under investigation at this time.

If you are wondering why my procedural execution is systematically dismantling your defense,

understand that this strategy is a latent inherited talent. My late grandmother, Joyce, directed the Santa Monica City Attorney's Office for over a decade. My mother, Pamela a consulting legal strategist, authored the federal district court brief that gutted opposing counsel and overturned the wrongful state conviction of Frank Gable in Oregon; she also personally architected the subpoena that trapped Dolan under oath. Raised on high-level legal logic, I inherited an instinct for multi-move litigation strategy and total immunity to your courtroom theater misdirections. My team of private legal analysts evaluated the record that I have built against the group of you so far, and confirmed what you are learning the hard way: the apple did not fall far from the tree. I'd be glad to give you more insights, but you already know I do not favor attorneys very much despite the fact that it actually runs in the family. **Like I said before, there are very few attorneys out there that can be trusted, the good ones, well they generally don't make the headlines or fall under investigation for professional conduct because they don't violate the bar rules.** Now, on the other hand, I have seen attorneys who do violate matter of fact, I was married to one, and as I've told you before she was a scumbag. But I'm just happy that she's in recovery now. And she's working her steps.

To Tyler, Dorenzo, and Carmichael: do not lazily mistake my cold, calculating resolve and profound disgust for your self serving "vexatious" "anger" label. **Resorting to ad hominem mudslinging and character assassination is the predictable hallmark of a losing defense, a desperate, distasteful maneuver deployed only when counsel has run completely out of substantive legal arguments.** You resort to these cheap labels for the sole purpose of distracting from your own fatal oversight Tyler and Carmichael: your unwitting, on-the-record admission that CSAA unlawfully adopted a hostile, adversarial posture against an unrepresented insured at step one of the claims-handling process.

If my personal experience with my ex-wife, herself a sleazy attorney, taught me anything, it is that certain members of your profession operate with a remarkably deficient level of emotional intelligence. Do not misunderstand me: there are highly qualified, honest, and ethical attorneys in the legal field; I simply recognize that your defense team does not belong to that group.

It seems that the group of you attorney's emotional intelligence hovers somewhere around that of a high school sophomore, which neatly explains why your team so foolishly mistakes my cold, calculating resolve for simple, elementary "anger." That miscalculation is precisely why you resort to the self-serving, pejorative label of "vexatious."

What you are actually witnessing is an individual who has already lost everything and has nothing left to fear, operating with total procedural transparency. I am laying out exactly what is coming for you so that you can never claim surprise. You can contrast my transparency with the genuine shock I felt when your counsel falsely represented to the tribunal that they had never seen or heard the 911 recording or police records. Talk about a sleazy maneuver.

Unfortunately for you, that deceit completely collapsed when I impeached AbdelHalim on the record, forcing him to admit under oath that it was his own voice on the 911 call declaring he struck me. And while your team somehow persuaded Judge Wong to play along at trial by withholding the governing law and suppressing the merits from the jury, that improper shielding was short-lived. It did not work out too well for the defense in the end, as that exact instructional and evidentiary error now forms the structural core of your exposure on appeal.

I am not angry; I am profoundly disgusted. I am disgusted that I am forced to wade through your bad-faith maneuvering while the lot of you stuff your pockets with legal fees bankrolled by policyholders. Let us be

entirely clear about where your billable hours come from: they are extracted from premium-paying policyholders who rely on CSAA to honor its statutory duties.

Under California law, an insurer is required to conduct a prompt, fair, and objective third-party investigation the moment potential liability arises (10 CCR § 2695.7; Cal. Ins. Code § 790.03(h)). Instead, Stephen Dorenzo, you and CSAA continue to violate governing regulations by issuing a predetermined, outcome-oriented liability denial as your very first communication to an unrepresented claimant.

By attempting to characterize that initial denial as protected "litigation posture" in Tyler's Anti-SLAPP motion, you formally admitted that CSAA approached this claim from a hostile, adversarial stance in anticipation of litigation rather than conducting the objective investigation mandated by law. You can thank Tyler for locking that statutory violation permanently onto the record.

That "oops" moment is permanently locked onto the record, and no amount of character mudslinging will ever clean it off. It was Tyler who handed me a textbook gift when he filed that Anti-SLAPP motion (Cal. Civ. Proc. Code § 425.16). By attempting to frame early settlement communications as protected "litigation posture," he created a binding judicial admission that CSAA handled an unrepresented insured's claim from a hostile, adversarial stance from day one, an unequivocal violation of California's Fair Claims Settlement Practices Regulations (10 CCR § 2695.1; Cal. Ins. Code § 790.03(h)). Stephen, every pleading you file defending your failed investigation is being submitted directly to the Department of Insurance. Bruce, no amount of internal complex claims analysis can fix the procedural trap Tyler dropped in your lap.

Finally, inform AbdelHalim that his ongoing attempts to divest, liquidate, and transfer his assets across property titles and names to dodge liability are being monitored and fully documented. Those conveyances will be systematically unwound and voided under the California Uniform Voidable Transactions Act (Cal. Civ. Code § 3439 et seq.). Even if he flees the state, CSAA remains squarely on the hook. The authorities have already signalled they are happy and willing to unwind his shell game. He is not fooling anyone, she could tell him he doesn't have to keep on shuffling different names in as property owner, and trying to hide him under his fictitious family names and other parties is not going to work.

Please enjoy the draft outline, Rebecca, Steven, and Charmichael. Now you and the rest of counsel know exactly what legal storm is coming for you, with near-certain mathematical probability. And you can not avoid the inevitable collapse your positions have brought down on yourselves. I will continue to retain my level of transparency with the entire group of you. As I have mentioned already, I am disgusted with the gamesmanship that CSAA is funding through its panel council.

I do not even need to ask you to act accordingly, Rebecca. Tyler and Priya have already demonstrated your team's severe tactical limitations. Let us see how your arguments hold up before the Court of Appeal, evaluated by seasoned appellate justices rather than green trial court research clerks.

The appellate justices are far more sophisticated than the trial court gatekeepers you managed to manipulate at the Superior Court level. Fortunately, I have established an exceptionally smooth working relationship with the clerk's office at the Court of Appeal, First Appellate District, Division Three. While they naturally cannot provide legal advice, they ensure my filings are procedurally flawless and fully compliant. Though this appellate process may extend another year, a delay I certainly do not prefer, it will undoubtedly line your pockets with even more of CSAA's money in the interim.

Rebecca. Waiver? WTF? LOL. I still find it astounding that you genuinely believe that even under a theory of waiver, the trial court could simply ignore its mandatory statutory obligation to properly instruct the jury when they requested clarification on the law (Cal. Civ. Proc. Code § 614).

Attempting to manufacture a "waiver" out of an unrecorded sidebar hearing, in direct contradiction to my express opposition on the record, is an embarrassingly desperate appellate strategy. No Court of Appeal in the country is going to apply the invited error doctrine when the trial transcript proves I repeatedly, vigorously objected to the judge's manufactured claim of waiver.

In fact, the record proves the exact opposite of what you represent. Perhaps you should go back and re-read the transcripts closely, because you can rest assured the appellate justices will. They will see my timely objections, my immediate motion for a mistrial, and my formal demand for a settled statement (Cal. Rules of Court, Rule 8.137) to reconstruct the unrecorded sidebar in direct opposition to the judge's improper ruling.

How could a litigant possibly be deemed to have "waived" an issue when they actively fought the trial court on that exact point on the open record? That is simply not how California appellate law operates. In fact, let me explain to you how the law actually works. Below you will find the draft that you are going to see filed. Some form of this will make it out of my crucible. Keep your eyes peeled for the true filing. You'll see it soon enough. Have a good day.

Regards,

Frank Rosario

Plaintiff 🏛️

===== DRAFT FOLLOWS 😊 =====

Appellate Reply Outline and Analytical Strategy

In the Court of Appeal of the State of California, First Appellate District, Division Three

Franciscus Dylan Rosario, Plaintiff and Appellant, v. Subhi Abdelhalim, individually and dba Sonoma Liquor, Defendant and Respondent
Civil No. A173827 (San Francisco County Superior Court Case No. CGC-21-594102)

I. Issue Statement and Structural Overview

The central question presented on appeal is whether the trial court committed reversible instructional and constitutional error when, after the deliberating jury specifically asked whether it should consider Vehicle Code sections 22107 and 21804(a) and requested to be instructed on those provisions, the court categorically prohibited the jury from considering those statutes, refused to instruct on them, and justified that prohibition by declaring that enacted statutes were non-evidence. Plaintiff Franciscus Dylan Rosario explicitly pleaded turning and yielding duties under Vehicle Code sections 22107 and 21804(a), but the trial court omitted those specific statutory duties from the initial charge. During deliberations, Defense Exhibit 500, which was the plaintiff's complaint designated as an exhibit by the defense, placed those exact statute numbers before the jury. Confronting that

instructional gap, the deliberating jury submitted Jury Question #1, asking for the statutes by number and requesting judicial instruction. In response, the trial court issued a dual prohibition: ordering that the jury may not consider those statutes and declaring that the court would not instruct upon them. That categorical ban is the core legal error under review, and Respondent's waiver theories represent an improper attempt to prevent judicial review of that trial court error.

To ensure a systematic destruction of Respondent's arguments, this reply brief is organized into two primary procedural and substantive spines, followed by targeted responses to Respondent's tertiary affirmative defenses. Argument I demonstrates that the trial court's response to Jury Question #1 constituted a constitutional and statutory misallocation of adjudicative functions under Code of Civil Procedure section 614, Evidence Code section 310, California Constitution article I, sections 7 and 16, and the Fourteenth Amendment. Argument II systematically dismantles Respondent's invited-error and waiver arguments, establishing that Plaintiff never invited the dual instructional ban and that an incomplete off-record colloquy cannot transform a dispute over juror self-help into consent to a categorical ban on governing law. Argument III dismantles Respondent's leaf arguments regarding CACI form numbers, omitted negligence per se requests, category-error denials, CACI 401 equivalence, and evidentiary harmlessness. Neither primary argument depends on the other: Argument I establishes the substantive illegality of the court's ban, while Argument II dismantles the procedural gate Respondent attempts to erect.

II. Argument I: The Categorical Prohibition as Constitutional Misallocation of Adjudicative Functions (Spine A)

A1. The Record Event and the Dual Prohibition

The reversible event on appeal is the content of the trial court's answer to the deliberating jury, rather than a charge-conference quarrel over pre-deliberation form numbers. During deliberations, the jury submitted Jury Question #1, asking whether, in deciding the question of negligence, it should consider the provisions of Vehicle Code sections 22107 and 21804(a), and whether it could be instructed on those provisions. Plaintiff claimed an unsafe right turn by Respondent that struck Plaintiff in a crosswalk, while Respondent disputed impact and path. Those competing accounts made Vehicle Code section 22107, governing roadway turns, and section 21804(a), governing yielding to approaching traffic, the concrete statutory yardstick for ordinary care. Defense Exhibit 500 placed those statute numbers directly before the jury, revealing the instructional gap created when the initial charge omitted those pleaded duties.

The trial court answered Jury Question #1 with a dual categorical prohibition that withdrew the governing law from the jury. On the record at Reporter's Transcript Volume 11, page 7, lines 24 to 27, the court stated: "You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions." The court then supplied its rationale at page 8, lines 5 to 9, asserting that neither section was part of the evidence and that jurors were "not permitted to consider that as evidence in the case, period." This ruling did not select between competing correct formulations of law, nor did it declare the statutes legally inapplicable after reasoned analysis. It forbade consideration, refused instruction, and justified the ban by misclassifying enacted statutes as unadmitted evidence.

A2. The Three Constitutional Movements: Refusal, Misclassification, and Foreclosure

The trial court's ruling contains three distinct constitutional movements that systematically dismantled the adjudicative structure. The first movement, Refusal, occurred when the court informed the jury that it could not consider Vehicle Code sections 22107 and 21804(a) and that the court would not instruct on them. Due process under California Constitution article I, section 7 and the Fourteenth Amendment requires a meaningful hearing, which exists only when the factfinder applies correct legal rules of decision. Article I, section 16 preserves the fundamental right to a jury

trial, requiring disputes to be resolved by jurors applying court-declared legal standards. Code of Civil Procedure section 614 implements that constitutional guarantee during deliberations by mandating that required legal information must be given when requested. The court's categorical refusal directly violated that statutory and constitutional mandate.

The second movement, Misclassification, occurred when the court asserted that the statutes were not part of the evidence and could not be considered as evidence. Evidence Code section 310, subdivision (a), explicitly assigns all questions of law, including the construction and applicability of statutes, exclusively to the court. Treating an enacted statute as unadmitted evidence collapses the constitutional boundary between law and fact. Whether a California statute was physically marked as an exhibit is legally irrelevant to its status as governing law. The third movement, Foreclosure, occurred when the court added the word "period," closing the door on the governing legal framework. Together, these three movements represent an abandonment of the judicial duty to declare law and a foreclosure of the jury's duty to apply law.

A3. Violation of Plaintiff's Adjudicative Right to Due Process and a Law-Governed Jury Trial

A civil plaintiff who invokes the judicial system is constitutionally entitled to adjudication: a decision of their claim on its legal merits under correct legal standards. Under the Fourteenth Amendment and California Constitution article I, section 7, a cause of action is a protected property interest that the State cannot extinguish through procedurally unfair processes. Due process does not guarantee a favorable verdict, but it guarantees a fair opportunity to have the jury weigh evidence against the statutory standards of care that define the claim. When a deliberating jury identifies missing statutory duties and requests instruction, a judicial order banning consideration of those duties deprives the plaintiff of the legal foundation of their claim.

Furthermore, California Constitution article I, section 16 guarantees Plaintiff the right to a jury trial where factual disputes are resolved under court-declared law. Banning consideration of governing statutes after the jury requests them leaves jurors in the box but strips the trial of its legal content. The trial court created an instructional gap by omitting the statutory duties from the initial charge, and then treated that very gap as a justification for refusing to instruct when the jury asked for guidance. Due process does not permit the court to create a legal vacuum and then treat that vacuum as a permanent barrier to declaring the law. This structural defect altered the framework within which the trial proceeded, resulting in a miscarriage of justice under California Constitution article VI, section 13.

A4. The Statutory Duty Stack: CCP Section 614, Evidence Code Section 310, and Vehicle Code Duties

California's statutory framework establishes an mandatory duty stack that governs deliberating jury inquiries. Under Code of Civil Procedure section 614, when deliberating jurors express confusion or request information on a point of law, the trial court has an affirmative, non-delegable duty to provide clear and legally accurate guidance. As established in *People v. Beardslee* and *Bartosh v. Banning*, the court must attempt to clear up instructional confusion expressed by the jury regarding applicable legal principles. Jury Question #1 explicitly named Vehicle Code sections 22107 and 21804(a) and requested instruction, triggering the court's mandatory statutory duty under section 614.

Evidence Code section 310, subdivision (a), reinforces that stack by placing the determination of applicable statutory law exclusively within the judicial function. Vehicle Code sections 22107 and 21804(a) were pleaded in the complaint and supplied the concrete statutory yardstick for turning and yielding maneuvers. Respondent's reliance on charge-conference cases such as *Agarwal v. Johnson*, *Finn v. G.D. Searle & Co.*, *Metcalf v. County of San Joaquin*, and *Conservatorship of Gregory* is misplaced. Those authorities govern pre-deliberation instruction proposals; they do not authorize a trial court to issue a categorical ban on governing law once a deliberating jury names the statutes and requests guidance under section 614.

A5. Six Complementary Descriptors of a Single Unlawful Event

The trial court's categorical prohibition represents six complementary descriptors of a single, unified constitutional and statutory failure. First, the ruling constituted a usurpation of the jury's province by preventing jurors from applying governing statutory standards to the disputed facts. Second, it represented a misallocation of constitutional functions, disrupting the division where the Legislature enacts statutes, the court declares law, and the jury finds facts. Third, it resulted in the denial of a meaningful jury trial under article I, section 16, leaving the jury without the legal yardstick required to evaluate liability.

Fourth, the ruling executed a judicial nullification of governing law, where the court actively forbade the application of enacted Vehicle Code sections that the jury expressed a willingness to apply. Fifth, the court committed a fundamental category error by treating enacted statutory commands as unadmitted evidentiary exhibits. Sixth, the court committed an abdication of judicial duty under Code of Civil Procedure section 614 and Evidence Code section 310 by refusing to instruct a confused jury on points of law. Together, these six descriptors demonstrate an absolute breakdown of the trial architecture.

A6. Demonstrating Reversible Prejudice Under the Soule Framework

Under California Constitution article VI, section 13 and *Soule v. General Motors Corp.*, instructional error in a civil case requires reversal where it is reasonably probable that a result more favorable to the appellant would have been reached absent the error. Soule factor (4), which evaluates indications from the jury itself that it was misled, serves as the primary driver of prejudice in this appeal. The deliberating jury discovered Vehicle Code sections 22107 and 21804(a) via Defense Exhibit 500, recognized the gap in the initial charge, and explicitly asked to be instructed on those provisions. The jury's explicit question provides direct, uncontradicted proof that the missing statutory duties were material to its deliberations.

Factors (2) and (3) of the Soule framework do not cure this prejudice. General ordinary care instructions under CACI 401 do not contain the specific statutory turning and yielding standards enacted by the Legislature in Vehicle Code sections 22107 and 21804(a). Furthermore, closing arguments by counsel are advocacy, not judicial declarations of law, and cannot substitute for mandatory instructions under section 614. Factor (1), involving the state of the evidence, confirms prejudice because the liability evidence regarding turn execution, path, and impact was fiercely contested. Banning the governing statutes forced the jury to weigh conflicting evidence in a distorted legal scale, making reversal mandatory.

A7. Conclusion to Argument I and Handoff to Waiver Analysis

In conclusion, the trial court committed constitutional and statutory error because the deliberating jury asked for governing law and the court forbade that law. By treating Vehicle Code sections 22107 and 21804(a) as non-evidence, refusing instruction, and barring jury consideration, the court violated Code of Civil Procedure section 614, Evidence Code section 310, California Constitution article I, sections 7 and 16, and the Fourteenth Amendment. That failure deprived Plaintiff of a fair trial under correct legal standards and altered the object of deliberation.

Having established the substantive illegality of the trial court's dual prohibition, the remaining question is whether Respondent's invited-error and waiver arguments can prevent this Court from addressing that error. As demonstrated in Argument II, Respondent's procedural waiver story fails as a matter of law and cannot shut the door on appellate review.

III. Argument II: Dismantling Respondent's Invited-Error and Waiver Theories (Spine B)

Bo. Micro-Opening: Identifying an Instructional Gap Rather Than Invited Error

Respondent's invited-error defense depends on treating a contested colloquy at Reporter's Transcript Volume 11 as if Plaintiff knowingly invited the trial court to exclude Vehicle Code sections 22107 and 21804(a) from the legal framework. That characterization collapses when the record is restored to its proper sequence. The initial instructions omitted Vehicle Code sections 22107 and 21804(a). Defense Exhibit 500, the plaintiff's complaint designated as an exhibit by the defense, placed those statute numbers before the deliberating jury, exposing the instructional gap. The jury then submitted Question #1 asking whether it should consider those statutes and whether it could be instructed on them.

The trial court answered by issuing a dual categorical prohibition: ordering that the jury may not consider the statutes and declaring that the court would not instruct on them. Only after that ruling was formulated and delivered did the on-record colloquy cited by Respondent occur. On page 5, lines 8 to 10 of Reporter's Transcript Volume 11, Plaintiff stated: "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." Respondent paraphrases this as an open-court admission consenting to the refusal to instruct. However, Respondent collapses two distinct concepts: agreement to prevent unsupervised juror reliance on uninstructed material is not consent to a permanent judicial rule that governing statutes can never be given as legal instructions.

B1. Unmasking Respondent's Flawed Logical Move and Applying the Weighing Bar

Respondent's argument begins mid-colloquy, isolating Plaintiff's comments from their procedural context to fabricate a narrative of invitation and estoppel. Respondent asserts that because Plaintiff agreed that uninstructed code sections should not be considered, Plaintiff invited the court's refusal to instruct. This logical move is fundamentally flawed because it inverts cause and effect, attempting to use post-ruling comments to explain away a pre-existing judicial ban.

Appellate review requires applying a strict weighing bar: even if Respondent's paraphrase of the transcript is accepted, does that paraphrase authorize a categorical ban on named Vehicle Code duties after a deliberating jury asks for legal guidance? The answer is no. Agreement that jurors should not engage in independent, unsupervised parsing of uninstructed statutory text does not authorize a trial court to issue a permanent rule forbidding judicial instruction on those statutes. Respondent cannot use invited error to transform a dispute over juror self-help into consent to an unlawful instructional prohibition.

B2. Restoring the Trial Chronology: The Judicial Ban Preceded Any Alleged Invitation

To evaluate invited error, the appellate court must restore the accurate chronological sequence of trial events. First, the initial charge omitted Vehicle Code sections 22107 and 21804(a), leaving an instructional lacuna regarding turning and yielding duties. Second, Defense Exhibit 500, containing those statute numbers, was placed before the jury during deliberations. Third, the jury submitted Question #1 asking whether it should consider those provisions and whether it could be instructed on them. Fourth, the trial court formulated and delivered its dual response prohibiting consideration and refusing instruction before holding the on-record colloquy.

Fifth, the parties held an on-record discussion where Plaintiff expressed concern about jurors accessing external code sections not included in the charge. Sixth, the trial court unilaterally declared that Plaintiff had waived the instruction and acquiesced in the ruling. Seventh, Plaintiff actively contested those labels, invoked California Rules of Court, rule 8.137, sought record reconstruction, and renewed objections and mistrial motions. This chronological sequence defeats invited error as a matter of law. A party cannot invite or induce a judicial ruling that the trial court had already formulated, delivered, and implemented prior to the alleged invitation.

B3. Distinguishing Invited Error from Defensive Reactions to an Instructional Lacuna

Under settled California law, the doctrine of invited error applies only where a party's affirmative conduct induces the specific ruling challenged on appeal. As held in *Norgart v. Upjohn Co.* and *People v. Cooper*, the record must demonstrate a clear, deliberate tactical choice concerning the challenged ruling itself. Furthermore, *Huffman v. Interstate Brands Corp.* establishes that mere acquiescence or failure to object is insufficient to invoke invited error where counsel did not request the erroneous ruling and no deliberate tactical choice appears on the record.

Here, Plaintiff made no deliberate tactical choice to exclude Vehicle Code sections 22107 and 21804(a) from the legal framework. Plaintiff's comments during Reporter's Transcript Volume 11 were defensive reactions to an existing instructional gap and an effort to address potential juror misconduct. Defensive handling of a pre-existing instructional lacuna does not constitute affirmative inducement under *Huffman* or *Norgart*. Object mismatch reinforces this distinction: agreement to stop unsupervised juror research is logically distinct from consenting to a judicial ban on court-declared instructions.

B4. Rebutting Judicial Waiver Labels and Establishing Ongoing Preservation

Respondent relies heavily on the trial court's unilateral statements at Reporter's Transcript Volume 11, page 7, lines 16 to 22 ("You've waived that request, sir") and page 11, lines 14 to 19 (asserting "acquiescence"). However, judicial labels do not substitute for the appellate inquiry into whether a party intentionally relinquished a known right. Under *People v. Saunders* and *City of Ukiah v. Fones*, a valid waiver requires clear, unequivocal, and intentional relinquishment of the specific right at issue. The trial court's subjective characterization of Plaintiff's position is merely evidence of the court's view, not proof of intentional relinquishment by Plaintiff.

The record demonstrates continuous preservation rather than abandonment. Plaintiff explicitly contested the court's waiver characterization, requested to place objections on the record regarding Jury Questions #1 and #2, invoked California Rules of Court, rule 8.137, and formally renewed motions for mistrial. Under Code of Civil Procedure section 647, formal exceptions are unnecessary once an objection has been brought to the court's attention. As confirmed in *People v. Brooks* and *City of Long Beach v. Farmers & Merchants Bank*, once a court has ruled and cut off argument, continuous repetition is not required to preserve an issue for appeal.

B5. The Off-Record Colloquy and CRC Rule 8.137 Record Reconstruction

Critical discussions regarding Jury Questions #1 and #2 occurred off the record without a court reporter present. When the trial court later asserted on the record that Plaintiff had acquiesced, Plaintiff immediately objected that material discussions occurred off the record and invoked California Rules of Court, rule 8.137 to reconstruct the proceedings. Rule 8.137 provides a specific procedural mechanism to settle the record when unreported proceedings are material to appellate review.

Under *People v. Young* and *People v. Gzikowski*, an appellate court must exercise extreme caution when a respondent relies on an incomplete or silent record. Respondent cannot affirmatively use a silent or incomplete transcript to prove intentional waiver when the unreported proceedings themselves were disputed and subject to a timely reconstruction request. The trial court overruled Plaintiff's reconstruction request and terminated argument. Respondent cannot transform that procedural truncation into affirmative proof of a knowing waiver.

B6. The "Even-If" Analysis: Object Mismatch Defeats Waiver Even Under Hostile Paraphrases

Even if Respondent's paraphrase of Reporter's Transcript Volume 11 is fully credited *arguendo*, Respondent's waiver defense still fails under a mandatory "even-if" legal analysis. Assuming *arguendo* that Plaintiff agreed that Jury Question #1 should be answered by stating the statutes could not be

considered because they were not in the instructions, that agreement addressed managing uninstructed material during deliberations. It did not constitute consent to a judicial rule that those statutes could never be given as legal instructions.

This object mismatch defeats estoppel under four distinct principles. First, Code of Civil Procedure section 614 imposes a non-delegable duty to instruct on points of law when requested by deliberating jurors, a duty that cannot be waived into silence by agreement regarding uninstructed material. Second, the object of Plaintiff's agreement (preventing juror self-help) mismatches the object of the challenged ruling (forbidding judicial instruction). Third, Plaintiff's pleadings and proposed instructions demonstrate a continuous theory seeking statutory protection, making Respondent's "statutes out forever" interpretation incoherent. Fourth, under Norgart and Cooper, agreement with a procedural response to uninstructed text does not supply the deliberate tactical inducement required for invited error.

B7. Re-Establishing the Primary Appellate Question and Handoff to Merits

Respondent's waiver arguments represent an attempt to divert this Court's attention away from the trial court's failure to fulfill its mandatory duty under Code of Civil Procedure section 614. The primary question on appeal is not whether Plaintiff articulated objections with technical perfection during rapid, unrecorded sidebar discussions. The dispositive question is whether, after a deliberating jury explicitly named Vehicle Code sections 22107 and 21804(a) and asked for legal instruction, the trial court fulfilled its obligation to declare the law.

Plaintiff preserved the issue by objecting to the court's characterization, seeking record reconstruction under rule 8.137, and renewing mistrial motions until the court cut off argument. Having dismantled Respondent's invited-error gate, the Court must return to the central substantive error: whether the trial court erred in banning consideration of sections 22107 and 21804(a) and refusing instruction after Jury Question #1.

IV. Argument III: Dismantling Respondent's Tertiary Affirmative Defenses (ROB Nests)

IV-A. Rebutting the Pretrial Form Trap (CACI 707 vs. CACI 705)

Respondent contends that Plaintiff waived appellate review of any turning instruction because Plaintiff's pretrial proposed instruction list cited CACI 707 (Speed Limit) rather than CACI 705 (Turning). This argument represents a hyper-technical form trap that elevates an administrative CACI number typo over explicit textual substance. Respondent's brief acknowledges that beside the CACI 707 entry, Plaintiff's proposed instruction list contained the explicit textual description: "Duty of Driver to Pedestrians: Explicit duty of drivers to yield to pedestrians within marked crosswalks." That textual description provided clear, unambiguous notice of Plaintiff's legal theory.

Under Civil Code section 3528, the law respects substance rather than form. Pretrial form-number disputes governed by Agarwal, Finn, Metcalf, and Gregory do not control once a deliberating jury submits a specific inquiry under Code of Civil Procedure section 614. Even assuming arguendo that Plaintiff typed CACI 707 instead of 705 on a pretrial list, the deliberating jury subsequently named Vehicle Code section 22107 directly and requested instruction. Jury Question #1 triggered a fresh, independent judicial duty under section 614 that completely bypassed pretrial form-number typos.

IV-B. Rebutting the Omitted Negligence Per Se Request Defense

Respondent asserts that Plaintiff cannot claim error regarding Vehicle Code section 22107 because Plaintiff never requested a formal negligence per se instruction. This defense argument attempts to rewrite Plaintiff's appeal into a missing presumption argument under CACI 418. Negligence per se is a specific evidentiary mechanism that establishes a rebuttable presumption of negligence upon proof of a statutory violation. Plaintiff's appeal does not depend on whether a formal CACI 418 presumption

instruction was requested.

Applying the weighing bar reveals the flaw in Respondent's argument: the absence of a formal negligence per se request does not authorize a trial court to forbid a deliberating jury from considering governing statutory duties. Vehicle Code section 22107 defines the statutory standard of care for turning maneuvers. The trial court was obligated under Evidence Code section 310 and Code of Civil Procedure section 614 to instruct on that statutory standard when requested by the jury, regardless of whether Plaintiff sought a statutory presumption instruction.

IV-C. Rebutting the Category-Error Denial and Circular Rationale

Respondent denies that the trial court barred Vehicle Code sections 22107 and 21804(a) on the ground that statutes were "not evidence," attempting to distance the court from its own words at Reporter's Transcript Volume 11, page 8, lines 5 to 9. Respondent's denial fails because the trial court's rationale is recorded on the transcript page: the court explicitly declared that the statutes were not part of the evidence and that jurors were not permitted to consider them as evidence. That rationale represents a direct, unvarnished category error that treats legislative commands as unadmitted exhibits.

Even if Respondent's alternative interpretation is accepted, that the court barred the statutes because they were "not part of the instructions," the ruling remains fatal. Answering a jury's request for statutory instructions by stating that the statutes cannot be considered because they are not in the instructions is completely circular. That circularity converts the court's initial omission into a permanent barrier against supplying the law under section 614. Defense Exhibit 500 confirms that the statutes were properly before the jury's eyes, and sustaining midtrial evidentiary objections to a witness reading code sections did not authorize banning those statutes when the jury asked for them as law.

IV-D1. Rebutting the Alleged Equivalence of General Negligence (CACI 401)

Respondent claims that omitting CACI 705 was harmless because the jury received CACI 401 (General Negligence), which contains an equivalent reasonable-care standard. This argument relies on a false equivalence between abstract ordinary care and specific statutory turning duties. CACI 401 provides a general definition of negligence, whereas Vehicle Code section 22107 establishes a mandatory statutory duty: a driver shall not turn a vehicle from a direct course unless and until such movement can be made with reasonable safety.

Sesler v. Ghumman directly refutes Respondent's equivalence theory. Sesler establishes that general reasonable-care instructions do not cure a trial court's refusal to provide specific statutory turning and right-of-way law when requested by a deliberating jury. While Sesler factually involved a multi-lane left turn, its legal principle applies with equal force to right turns: when a deliberating jury asks a specific question about turning duties, re-reading general instructions or relying on abstract care standards constitutes reversible error.

IV-D2. Rebutting the Claimed Harmlessness Based on Disputed Trial Evidence

Respondent argues that any instructional error was harmless under Soule v. General Motors Corp. because defense testimony established low speed, no felt impact, no vehicle damage, and wrong-way scooter operation by Plaintiff. Respondent's argument misapplies the Soule prejudice standard. Soule does not require an appellant to prove that a favorable verdict was guaranteed; it requires showing a reasonable probability that the error affected the verdict.

Under Soule factor (4), indications from the jury itself that it was misled provide the most compelling evidence of prejudice. The deliberating jury's explicit request for Vehicle Code sections 22107 and 21804(a) demonstrates that the jury considered those statutory duties material to its liability

determination. Conflicting trial evidence under Soule factor (1) confirms prejudice rather than erasing it. When liability evidence is sharply contested, banning the specific statutory standards of care distorts the weighing process, making a different outcome reasonably probable had correct instructions been given.

V. Conclusion and Relief Requested

First, during deliberations in this motor-vehicle-versus-scooter action, the jury submitted Jury Question #1 explicitly asking whether it should consider Vehicle Code sections 22107 and 21804(a) and whether it could be instructed on those provisions. Second, the trial court issued a dual prohibition forbidding the jury from considering those statutes, refusing to instruct on them, and justifying the ban by asserting that enacted statutes were non-evidence at Reporter's Transcript Volume 11, page 7, lines 24 to 27 and page 8, lines 5 to 9. Third, as established in Argument I, that ruling constituted a constitutional and statutory misallocation of adjudicative functions under Code of Civil Procedure section 614, Evidence Code section 310, California Constitution article I, sections 7 and 16, and the Fourteenth Amendment. Fourth, as established in Argument II, Respondent's invited-error and waiver arguments fail because Code of Civil Procedure section 614 duties cannot be waived into silence, agreement regarding uninstructed material mismatches a permanent ban on court-declared law, Defense Exhibit 500 refutes the claim that the statutes were foreign to the trial, and ongoing preservation is established on the record. Fifth, under California Constitution article VI, section 13 and Soule v. General Motors Corp. factor (4), the jury's explicit request for the withheld statutes establishes that a different result was reasonably probable, requiring reversal of the defense judgment.

Respondent's Opening Brief is a failed attempt to rewrite trial history by characterizing this appeal as a waived turning instruction concocted after judgment. The true record demonstrates the opposite: Respondent has attempted to transform a mid-deliberation categorical prohibition on statutory law into a CACI-label and colloquy waiver story. Respondent's leaf arguments rewrite a statutory jury inquiry as a form typo, rewrite defensive reactions to an instructional gap as invited error, rewrite a structural ban on law as ordinary packaging, and rewrite the jury's explicit statutory question as harmless abstraction.

Jury Question #1 and the trial court's dual answer place the fundamental instructional error in the record with absolute clarity. On invited error, non-delegable judicial duties and mismatched consent objects leave the court's dual prohibition fully reviewable on appeal. The judgment of the trial court should be reversed because the deliberating jury explicitly asked for governing law, and the trial court forbade that law.

\sig
Frank Dylan Rosario
Plaintiff

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Hope you enjoy the draft.

This email has been scanned for spam and viruses by Proofpoint Essentials. Click [here](#) to report this email as spam.

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Friday, August 7, 2026 10:46 AM
To: Morrissey, Rebekah; pnavaratnasingham@psalaw.net; Tyler O'Connell; Dylan Rosario; Serena Blithe; Veronica Jackson; Maria Reyes; Chad S. Tapp; Stephanie Hengl; Alberta Reyna; Rachael McGregor
Cc: Dylan Rosario
Subject: Re: [EXTERNAL] Fwd: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

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*****External email*****

This is the important line for you , rebekka.

Respondent's argument that general negligence under CACI 401 rendered specific turning instructions under CACI 705 redundant fails under California appellate law. Under **Soule v. General Motors Corp.** and **Major v. Western Home Ins. Co.**, reviewing courts look to direct indications from the jury to determine if it was misled. Here, during deliberations, the jury submitted Question #1 explicitly asking whether to consider Vehicle Code sections 22107 and 21804(a) regarding unsafe turns and yielding right-of-way. Instructing the jury to disregard these statutes stripped away the specific statutory framework requiring drivers to evaluate turn safety, leaving the jury with an overly abstract standard. Under **Sesler v. Ghumman**, trial courts are required to provide clarifying instructions when a deliberating jury seeks explicit guidance on turning duties and right-of-way. Depriving the jury of this statutory framework misstated the standard of care and constitutes strong evidence of prejudicial error.

Respondent's hyper-technical waiver argument regarding Appellant listing CACI 707 instead of CACI 705 is similarly unpersuasive. The trial record reveals a clear textual description beside CACI 707 explicitly requesting an instruction on the specific duties of drivers to yield. This mismatch represents a mere clerical or typographical error rather than an abandonment of the legal theory. Because the accompanying text provided both the court and defense with clear notice of the requested instruction, appellate courts will not enforce a waiver based solely on a numbering mistake.

Respondent also mischaracterizes the record in claiming Appellant consented to the court's response to Jury Question #1 or invited error. Appellant's timely objections and subsequent motion for mistrial demonstrate continuous non-acquiescence. Expressing an understanding of an adverse, already-implemented ruling does not equate to voluntary consent or abandonment of an issue. Under Code of Civil Procedure section 647, formal exceptions are unnecessary once an objection is brought to the trial court's attention, and a party is not required to repeatedly object after the court renders a definitive ruling (**People v. Brooks** (2017) 3 Cal.5th 1, 63; **City of Long Beach v Farmers & Merchants Bank** (2000) 81 Cal.App.4th 780, 784–785).

Finally, Respondent cannot weaponize a silent record to establish forfeiture when that silence resulted from the trial court conducting critical instructional conferences off the record without a court reporter

and subsequently denying Appellant's requests for a settled statement. A trial judge cannot create an artificial waiver by barring a court reporter and refusing statutory mechanisms to reconstruct the record. Crucially, under California Code of Civil Procedure section 614, the court has an affirmative, non-delegable duty to clear up points of law when a deliberating jury expresses confusion. This mandatory obligation cannot be bypassed by unrecorded sidebars or alleged oral stipulations. By instructing the jury to disregard governing Vehicle Code provisions in response to their explicit inquiry, the court breached its statutory duty, rendering Respondent's claims of waiver and lack of prejudice unsupportable as a matter of law.

Yawn. Your reply brief is dead on arrival. I would have expected that an entire group of supposedly competent attorneys would have actually read the trial record and noticed the multiple, explicit objections that completely destroy the baseless "waiver" Judge Wong manufactured. I wonder how many other litigants Wong pulled this stunt on, or perhaps you, as an insurance company, helped him cook up this bad-faith strategy. I don't know, but what I *do* know is that his blatant misconduct cost him his bench. And now, you are seriously attempting to invoke the invited error doctrine based on the very judicial error that lost him his job at the Superior Court, claiming that during an unreported, off-the-record sidebar, I somehow waived my right to have the controlling law presented to the jury? That argument is legally untenable.

Are you people actually stupid? Well, at least you drew explicit attention to his reversible instructional error, so thank you for handing me yet another fatal point on appeal. It's hilarious how you tried to weaponize a silent record created by the trial court's own procedural omissions, when in reality, settled California appellate law dictates that a silent record cuts your own defense to shreds. Rebecca, did you honestly believe this frivolous position was going to work? Either you were completely asleep at the wheel when you drafted this brief, or you were so desperate, grasping at straws, that you just threw this legally bankrupt dreck together and flung it at the Court of Appeal.

I sincerely hope you are proud to have your name on this transcript-defying nonsense. If any of you actually knew how to read a trial record under proper appellate standards, you would clearly see there was absolutely no acquiescence, no agreement, and no intentional relinquishment of rights regarding the jury instructions on controlling statutory duties. The real issue was the procedural vacuum and prejudicial error Wong created when he breached his non-delegable, mandatory statutory duty under Code of Civil Procedure Section 614 to clarify the law for a confused jury, all in an obvious attempt to throw the game for your defense team, Priya and Alberta.

Look, I couldn't care less how many billable hours you attorneys rack up padding your pockets off your insurance client, but trust me: I am going to metaphorically crush every single one of your merit-dodging defenses at the upcoming hearings and in my future filings.

You are welcome to go back to your client, CSAA, and start explaining the grim reality of what is going to happen next. And you can specifically inform Steve Dorkenzo about a binding legal doctrine called judicial estoppel. It means he is permanently locked into his prior statements regarding his investigation stance, leaving you legally pinned to a textbook, irrecoverable bad-faith claims-handling position.

And Tyler, why don't you get your act together and submit a properly formatted proposed order for once? Or maybe you tried, and you simply continue to fail at executing your most basic duties as an attorney. Oh, I know you thought your cheap dilatory tactics bought your client some extra time, homeboy, but that backfired miserably. All you managed to do was massively expand CSAA's legal liability by effectively creating binding judicial admissions that you violated California Insurance Code

Section 790.03 and the Fair Claims Settlement Practices Regulations. I couldn't care less what desperate maneuver you try next. In fact, I genuinely hope you are the same attorney handling the appeal, because you have handed me every single admission I need to sink both you and CSAA. Let's see if CSAA is foolish enough to keep paying you for a second round of handing me your case on a silver platter.

Anyway, I know none of you can actually reply to me because management has locked you all down. Maybe they put duct tape over your mouths, which is probably a good idea, considering the bulk of you have continuously failed in your basic duty of actually understanding the law. But from what I gather, this is just standard operating procedure in your profession. You see, as an engineer, a scientist, and a mathematician, we don't lie in our work product. We don't build falsehoods into our work, because in exact sciences, lies are instantly exposed upon inspection. Did the whole group of you think you could pull the wool over my eyes? That's not how this plays out, boys and girls. I am going to make sure the court receives every single valid legal theory as it ripens, which means (sorry, Tyler, boo-hoo) I am not going away anytime soon.

Certainly not based on the crazy, vexatious drivel you submitted to the court. Trust me, I now have more than enough ammunition to haul you in front of the State Bar of California for ethical violations. So, like I said, whatever little game you played to cover your own ass has failed. Now it's time for your ass to be hung out to dry and for the full weight of your misconduct to finally catch up with you.

Have a great day.

F.D. R.

On Wed, Aug 5, 2026, 12:04 AM Dylan Rosario <soltrinox@gmail.com> wrote:

Rebeka, this is for you.

A. The Fallacy of Unilateral Judicial Waiver Labels

Respondent's invited-error theory depends upon treating the trial court's characterization of Plaintiff's position as though it were Plaintiff's own knowing stipulation. California law does not permit that transformation.

A trial judge's characterization of a party's position as "waiver" or "acquiescence" is a judicial conclusion, not a binding party stipulation. In *People v. Saunders* (1993) 5 Cal.4th 580, the California Supreme Court distinguished forfeiture (the failure to make a timely assertion of a right) from waiver, which requires the intentional relinquishment of a known right. (Id. at p. 589.)

California courts have likewise recognized that a valid waiver must be clear, unequivocal, and intentional. (*City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107.) Consequently, when the trial court stated, "You've waived that request, sir" (RT 11, p. 7, ll. 16-22), that statement reflected the court's legal conclusion regarding Plaintiff's conduct. It did not transform the court's characterization into an affirmative stipulation by Plaintiff.

The subsequent proceedings demonstrate precisely why the court's characterization cannot be treated as dispositive. Once the court reporter was present, Plaintiff expressly disputed the court's assertion that he had waived the issue, requested that his objections be placed on the record, and sought reconstruction of the omitted proceedings. Those actions are fundamentally inconsistent with an intentional relinquishment of a known right. At a minimum, they establish that whether Plaintiff intentionally waived the instructional issue remains a disputed appellate question to be resolved from the entire record rather than from the trial court's unilateral characterization of an incomplete colloquy.

Accordingly, Respondent cannot satisfy the stringent requirements for waiver simply by repeating the trial court's characterization. The issue on appeal is whether the record demonstrates a clear and intentional relinquishment of the instructional claim. The Day 11 transcript demonstrates the opposite: contemporaneous disagreement over what had occurred, immediate efforts to preserve objections, and an express challenge to the court's own waiver characterization.

B. Off-the-Record Conferences and Rule 8.137 Demonstrate Plaintiff's Effort to Preserve the Record

The Day 11 transcript further demonstrates that critical discussions concerning Jury Questions #1 and #2 occurred outside the presence of the court reporter. When the court later asserted that Plaintiff had acquiesced, Plaintiff immediately objected, explaining that material portions of the discussion had occurred off the record. (RT 11, p. 11, ll. 27-28; p. 12, ll. 8-9.)

Plaintiff expressly invoked California Rules of Court, rule 8.137, requesting that the record be corrected, supplemented, or reconstructed to reflect the objections made during the unreported discussions. (RT 11, p. 11, l. 23 to p. 12, l. 13.)

California law recognizes California Rules of Court, rule 8.137 as the established procedure for reconstructing material portions of an incomplete or unreported record. (People v. Young (2005) 34 Cal.4th 1149, 1170; People v. Gzikowski (1982) 32 Cal.3d 580, 585, fn. 2.) Where an appellant promptly identifies omissions in the reporter's transcript, requests reconstruction under rule 8.137, and explains that material objections occurred during unreported discussions, the reviewing court should not presume from the incomplete record that the appellant intentionally relinquished a known right. Rather, the incomplete record itself becomes part of the preservation analysis, and any claim of waiver must be evaluated in light of the appellant's contemporaneous efforts to reconstruct and correct the record.

Here, the trial court permitted Plaintiff to briefly describe his objections, noted those objections, overruled them, and declined any further reconstruction of the disputed proceedings. (RT 11, p. 12, l. 14 to p. 13, l. 4.) Thus, the record affirmatively demonstrates Plaintiff's effort to preserve both the accuracy of the appellate record and his objections to the court's responses to Jury Questions #1 and #2. Respondent cannot now rely upon the incompleteness of that same record as affirmative proof of a knowing and intentional waiver.

C. Plaintiff's Renewed Objections and Mistrial Motion Are Inconsistent with Any Intentional Waiver

The remainder of the Day 11 proceedings further confirms that Plaintiff consistently attempted to preserve the instructional issue.

Following the record-reconstruction exchange, Plaintiff expressly renewed his objections to the court's handling of Jury Question #1 and renewed his motion for a mistrial. (RT 11, p. 13, ll. 5-21.) The trial court

overruled those objections, denied the mistrial motion, and terminated further argument. (RT 11, p. 13, l. 27 to p. 14, l. 9.)

Under Code of Civil Procedure section 647, formal exceptions to a ruling are unnecessary; it is sufficient that the objection is brought to the trial court's attention. Likewise, once the trial court has definitively ruled and makes clear that further argument will not alter its decision, a party is not ordinarily required to continue repeating the same objection in order to preserve the issue for appellate review. (People v. Brooks (2017) 3 Cal.5th 1, 63; City of Long Beach v. Farmers & Merchants Bank (2000) 81 Cal.App.4th 780, 784-785.)

The procedural sequence therefore reflects a continuous effort to preserve the issue. Plaintiff objected to the court's waiver characterization, invoked rule 8.137 to reconstruct omitted proceedings, renewed his objections to the court's responses to Jury Questions #1 and #2, renewed his motion for mistrial, and continued disputing the court's characterization of his position until the court terminated further argument. Those actions are fundamentally inconsistent with Respondent's assertion that Plaintiff clearly and intentionally relinquished the instructional issue.

Indeed, the transcript demonstrates the opposite. Plaintiff repeatedly sought to ensure that the appellate record accurately reflected his objections before the jury resumed deliberations. His conduct is consistent with preservation, not abandonment.

Accordingly, Respondent's invited-error theory depends not upon an express waiver by Plaintiff, but upon accepting the trial court's disputed characterization of an incomplete record as though it were an undisputed party stipulation. California law does not permit that substitution. Whether Plaintiff intentionally relinquished the instructional issue remains an appellate question to be resolved from the entire record, including Plaintiff's contemporaneous objections, his request for reconstruction under rule 8.137, his renewed mistrial motion, and his repeated efforts to preserve the issue.

D. Preservation Is Not the Ultimate Question

Even assuming arguendo that Plaintiff's objections were imperfectly articulated during the rapidly developing Day 11 proceedings, that does not resolve the issue presented on appeal. The deliberating jury expressly identified Vehicle Code sections 22107 and 21804(a), asked whether those statutes should be considered, and specifically requested instruction concerning them. The trial court declined to provide the requested legal guidance.

Accordingly, the central question on appeal is not whether Plaintiff employed technically precise legal terminology while objecting to the court's ruling. The dispositive question is whether, after the jury expressly requested instruction on governing statutory duties, the trial court fulfilled its obligation to provide legally correct guidance to assist the jury in resolving the issues before it.

Respondent's invited-error theory attempts to shift the Court's focus away from that fundamental question by treating a disputed preservation colloquy as though it constituted an intentional relinquishment of Plaintiff's right to appellate review. The record demonstrates otherwise. Plaintiff consistently objected to the court's characterization of his position, sought reconstruction of omitted proceedings, renewed his objections after reconstruction, and continued preserving the issue until the court terminated further argument. That record does not establish a clear, unequivocal, and intentional waiver. Rather, it confirms an ongoing effort to preserve objections to the trial court's refusal to instruct the jury on the governing law after the jury itself requested those instructions during deliberations.

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That pretty much guts the Respondent's Opening Brief. The truth always comes out eventually, even if the trial judge dismissed the court reporter to play his little games off the record. I disputed his characterization immediately when he claimed on the record that I had waived my objections. I had two or three witnesses sitting in the courtroom with me who clearly heard every objection I raised off the record, and we were fully prepared to assist the court in reconstructing those proceedings. The judge simply refused to reconstruct the record. That is what actually happened. There was never any waiver, and my objections regarding the instructional vacuum cannot be paraphrased or mischaracterized as consent. Strip away your out-of-context narrative, and you see that their entire argument relies on omitting the timely objections that the judge refused to record.

It was quite a move he pulled that morning. Rather than following standard protocol and bringing in a certified court reporter, the judge decided in his infinite wisdom that he wanted to debate the deliberating jury's questions off the record. When I raised clear objections to his proposed responses, he overruled them. Then, when we were back on the record and ready to formally reconstruct those unrecorded exchanges, he flatly refused to rebuild the transcript. That was the trick. By shutting down record reconstruction, he manufactured a pretext to claim that I acquiesced to blocking the law from reaching the jury. That never happened. I never agreed to withhold those instructions, and I never consented to depriving the jury of the governing Vehicle Code sections.

When the instructional vacuum finally manifested, the judge made it abundantly clear that he was the one blocking the law from the jury, and his own recorded statements prove it. By explicitly declaring on the transcript that statutory law was not evidence, period, he exposed the true source of the error. The trial court constructed the vacuum, refused to record the contemporaneous objections, and then attempted to weaponize an incomplete transcript by labeling it a party waiver. The actual record refutes that entire maneuver.

F.D.R.

On Tue, Aug 4, 2026 at 6:42 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Hey guys, Rosario here. Here is a refinement I have been working on. Let me know what you think.

"The trial court committed a constitutional misallocation of judicial and jury functions by refusing to declare the governing law, treating enacted statutes as evidentiary matter, and thereby invading the exclusive province of the jury to apply the law to the facts. This constituted an abdication of the court's mandatory judicial duty under Evidence Code section 310 and Code of Civil Procedure section 614, depriving Plaintiff of a meaningful jury trial and US Constitutional due process of law."

It hits pretty hard, right? The key is that it has to be read directly through the lens of constitutional law. This is not a side-show theory or a creative reinterpretation after the fact. The issue is what the Court actually said on the record.

The core violation is not that Judge Wong "refused to weigh the facts." It is that he refused to declare the governing law the deliberating jury asked for, then forbade the jury from using that law by misclassifying statutes as "evidence." That is a fair-trial / due-process problem implemented through California's jury-instruction and law-versus-fact architecture.

Judge Wong's own words (RT 11):

***"You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions."
(RT 11, p. 7, ll. 23–27)***

and then he explains why he refused to perform his constitutional duty here :

***"[N]either Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. ... They simply are not permitted to consider that as evidence in the case, period."
(RT 11, p. 8, ll. 4–9)***

The jury asked to be instructed on those statutes. The court answered with a ban and an evidence rationale. That was in violation of the constitution of the USA and California.

Whatever alternative theories you have constructed to explain why the statutes were denied, they directly contradict the Court's stated reasoning. The Court did not say one thing and secretly mean another. The record is clear: the Court expressly stated that the statutes were not to be considered because they were "not evidence."

So the question becomes simple. How do fabricated side-show theories about the denial of the Court's duty somehow erase the actual words spoken by the Court itself? **They do not.**

Either **your legal team fundamentally misunderstands the constitutional separation of functions between judge and jury**, or you are attempting to avoid the consequences of what the record actually says. Either way, the Constitution of the United States and the California Constitution do not disappear because a convenient fantasy theory is created after the fact.

I broke it down for those attorneys who seem to have forgotten what a trial is actually about. Read it carefully. This is the error you failed to explain away, Rebekah.

1. Usurpation of the Jury's Province

A court usurps the jury's province when it prevents the jury from performing its exclusive constitutional function: deciding disputed facts under the governing law. The constitutional role of the judge is to declare the law. The constitutional role of the jury is to apply that law to the evidence. Judge Wong's ruling collapsed those separate functions.

The jury asked for Vehicle Code sections 22107 and 21804(a) because it believed those statutes were necessary to decide Defendant's liability. Rather than declaring the law and allowing the jury to apply it, the Court instructed, "You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions." By eliminating the legal standard itself, the Court predetermined that the

jury would never decide whether Defendant violated those statutory duties. The jury could not determine whether Defendant violated duties it was forbidden to consider. That question constitutionally belonged to the jury.

2. Structural Constitutional Error

Although California civil courts generally analyze prejudice under Article VI, section 13 and *Soule v. General Motors Corp.* rather than applying automatic reversal for structural error, the nature of this defect is structural because it affected the framework within which the trial proceeded rather than a single evidentiary ruling. The Court did not merely exclude one exhibit or decline one instruction. It deprived the deliberating jury of the governing legal standard after the jury specifically requested it. The framework of adjudication depends upon evidence being evaluated under the applicable law. Here, that framework collapsed because the governing law was affirmatively and expressly withheld from the jury after their request.

3. Denial of a Meaningful Jury Trial

Article I, section 16 of the California Constitution guarantees more than the physical presence of jurors. It guarantees that jurors will decide disputed facts by applying the governing law declared by the court. The jury expressly requested the Vehicle Code duties governing Defendant's conduct. Instead of receiving those legal standards, it was instructed that it could not consider them. A jury that is denied the governing law cannot constitutionally perform its function. The result is not merely an imperfect jury trial but the denial of a meaningful jury trial.

4. Judicial Nullification of the Governing Law

Although not a formal doctrine, this accurately describes what occurred. Courts frequently discuss jury nullification, where jurors refuse to follow the law. Here, the opposite occurred. The jury requested the governing law and demonstrated its willingness to apply it. The Court refused to provide that law and instead prohibited the jury from considering it. The Legislature enacted Vehicle Code sections 22107 and 21804(a). The jury sought to apply those statutes. The Court nullified their application by forbidding their consideration.

5. Misallocation of Constitutional Functions and Category Error

California's constitutional structure assigns distinct responsibilities. The Legislature enacts statutes. The judiciary declares those statutes as governing law. The jury determines disputed facts and applies the law to those facts. Judge Wong's ruling disrupted each of those assignments.

The Court expressly stated that Vehicle Code sections 22107 and 21804(a) "were not part of the evidence" and that the jury was "not permitted to consider that as evidence...period." That reasoning demonstrates a fundamental legal category error. Statutes are not evidence. Statutes are law. Evidence consists of testimony, documents, photographs, and physical exhibits introduced to prove facts. Statutes establish the legal standards by which those facts are judged. Whether a California statute was physically admitted as an exhibit is legally irrelevant to its status as governing law. By treating statutes as though they were evidentiary exhibits, the Court confused two entirely separate legal categories and used that confusion as the basis for withholding the governing law. The constitutional allocation of authority was fundamentally altered.

6. Failure to Declare the Governing Law / Judicial Abdication

One of the trial judge's most fundamental responsibilities is to declare the law applicable to the issues presented by the pleadings and evidence. That responsibility becomes especially important when a deliberating jury asks a direct legal question. The jury specifically identified Vehicle Code sections 22107 and 21804(a) by section number and requested instruction concerning those statutes.

Code of Civil Procedure section 614 requires the court to provide appropriate legal guidance when a deliberating jury requests clarification concerning a point of law. The jury's request triggered that mandatory judicial duty. Rather than declaring the applicable law, the Court expressly stated that it would not instruct the jury on those provisions and imposed a categorical prohibition against considering them. That refusal was not an exercise of discretion concerning instructional wording. It was an abdication of the mandatory judicial responsibility imposed by California law.

7. Denial of the Rule of Law

The rule of law requires that legal disputes be decided according to governing legal standards rather than judicial preference or omission. The Legislature enacted Vehicle Code sections 22107 and 21804(a) as mandatory standards governing turning movements and right-of-way. Those statutes supplied the legal duties at issue in Plaintiff's negligence claim. The jury recognized their importance and requested them during deliberations. By refusing to declare those statutes and forbidding the jury from considering them, the Court prevented the case from being decided under the governing law enacted by the Legislature. Instead, the verdict was reached without the legal standards controlling Defendant's conduct, undermining one of the most fundamental principles of constitutional adjudication.

Collectively, the Court's statements establish far more than ordinary instructional error. They demonstrate a constitutional misallocation of judicial and jury functions. By refusing to declare the governing law, treating enacted statutes as evidentiary matter, and prohibiting the jury from applying the controlling legal standards to the facts, the Court invaded the exclusive province of the jury, failed to perform its mandatory judicial duties under Evidence Code section 310 and Code of Civil Procedure section 614, deprived Plaintiff of a meaningful jury trial, denied due process of law, and fundamentally compromised the integrity of the adjudicative process itself.

For those attorneys who seem to have forgotten how the law actually works, let me offer a reminder. There is this basic concept in our legal system that the judge stays in the judge's lane, the jury stays in the jury's lane, and attorneys and litigators like myself stay in ours. Each participant has a defined constitutional role.

The jury's role is to make decisions based upon the evidence presented and the law provided by the court. Which brings us directly to Defense Exhibit 500.

You placed that exhibit in front of the jury. The jury heard the testimony, reviewed the statutory provisions contained within the exhibit, and then did exactly what juries are supposed to do. They asked the Court for the law and instructions necessary to apply those statutes to the facts.

And then Judge Wong decided he was going to rewrite the rules of the game.

Rather than acknowledge the obvious issue created by the record, the Court manufactured a justification for refusing to instruct: the statutes were "not part of the evidence" and therefore the jury could not consider them.

The irony is almost impossible to overstate.

The very laws the defense provided to the jury became the same laws the Court later claimed the jury was not allowed to consider. The jury was literally holding the material in its hands, had heard testimony regarding it, and specifically requested guidance on how to apply it. Yet the Court somehow concluded that the jury could not consider those statutes because they were not evidence.

That is not a minor procedural disagreement. That is a fundamental collapse of the distinction between law and evidence. The Court created the problem, and then relied on that same manufactured problem as the reason to avoid correcting it.

So, Rebekah, Alberta, Priya, Tyler, and everyone else involved: no amount of insurance funding, litigation strategy, or post hoc explanations can reverse what the Court failed to do. The Court was required to properly adjudicate the merits of the case and provide the jury with the legal framework necessary to decide the issues before it. My claims were never fully adjudicated under the governing law. The Court's own words demonstrate that the jury was prevented from applying the legal standards necessary to decide the case. **PERIOD.**

I am really enjoying reading your attempt to misdirect the District Court. I honestly expected you to be a much harder opponent, Rebekah. This is what you are presenting as a defense for CSAA? Your sideshow theories do not retroactively negate the judge's own words.

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Maybe I should simply address all of them in my reply and then map each one against your imaginary theories about what Garrett Wong was thinking, Rebekah. Oh, wait, that does not work, because Garrett Wong already told us exactly what he was thinking and why he refused to provide the instruction.

That means all of the theories you present in your reply are distractions from the actual record. They do not explain the Court's stated reasoning; they attempt to replace it. The benefit for me is that I now have sufficient time to dismantle each argument, apply the actual law, and demonstrate why those theories fail.

And trust me, the California Supreme Court would have significant interest in an issue involving the separation of constitutional functions between judge and jury. Federal constitutional due process is not subordinate to arguments about minor CACI instruction disputes. The constitutional guarantee comes first.

And for the rest of you at CSAA, especially Mr. Stephen Dorenzo, the person pulling the strings from behind the scenes: do you really believe that the "deny, delay, depose" institutional strategy you have pursued from day one survives scrutiny?

You denied a claim that you unilaterally characterized and constructed without meaningful communication with me, then proceeded as though that manufactured position was the foundation of the dispute.

I really do appreciate the whole group of you attorneys hearing me out while I work through the process. I will make sure to update you as I get closer to a reply to Rebekah's complete failure to address the Court's failed duty and usurpation of the jury's province. You can go ahead and put this into ChatGPT, Tyler, and ask the same questions I am.

Post hoc justification: that is what I call that line of fecal matter that Tyler told the court. CSAA's liability determination must be judged based upon the information available and the legal obligations existing when the determination was made, not by a later verdict obtained through proceedings that are themselves challenged on appeal. Tyler improperly attempts to use a subsequent verdict as retroactive validation of its prior conduct. A judgment obtained through a proceeding currently challenged for judicial usurpation of the jury's constitutional function cannot serve as proof that earlier conduct complied with legal obligations. The validity of the underlying adjudication is the very issue before the reviewing court. A disputed outcome cannot be used to erase the alleged procedural violations that produced it.

And Chat/Tyler, these are not hallucinations. I understand how much you like to dismiss my arguments, but I want to make something very clear: I intend to dismantle your anti-SLAPP arguments on appeal. You can expect to see those appellate proceedings moving forward soon.

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Let me be clear. There are many people who are deeply troubled by the conduct of this entire group.

And CSAA, your accountability is coming.

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The issues are not simply about the ultimate outcome of the case. They concern the process that led to that outcome: whether CSAA fulfilled its obligations to conduct a fair and reasonable investigation, whether it accurately represented that its investigation was complete, whether its zero-dollar settlement position was supported by an adequate investigation, and whether it prematurely shifted into an adversarial posture before meaningful communication and evaluation had occurred.

You see, Tyler, that is not vexatiousness. That is called ripeness. Under California law I can pursue any of the causes of action as they present themselves. No, Tyler, you screwed up. You do not get to use "vexatious" as an escape hatch. And like I told you, yes, I invited you to file the anti-SLAPP. You were the fool who did it without looking at the consequences for your client. California Code of Regulations, Title 10, section 2695.7(b) required CSAA to conduct a thorough, fair, and objective investigation before reaching a liability determination. CSAA failed to obtain and evaluate readily available evidence bearing directly on liability, including the 911 recording and victim statements made contemporaneously with the collision. The absence of a reasonable investigation is a violation of the law.

Again, I want to thank all of you for allowing me to go on these monologues. It actually helps me work through the case, the legal standards, and the arguments by saying them out loud and seeing how they hold up.

I know the entire group of you has tried to use procedural gamesmanship to avoid adjudication of the actual merits. I know that is your litigation strategy, but not a single one of you has been able to explain how it is perfectly legal for an insurance company to maintain an empty investigation file while claiming it properly evaluated liability.

We will see whether the Court compels you to produce it or whether the insurance regulatory authorities ultimately have to examine it on my behalf. Either way, the writing is on the wall. It is simply a matter of delay, and as you already know, I am working on this full-time, so there will be no delay from my side.

And please do not mistake my metaphor for a threat. Explaining the consequences of your actions is not a threat, Alberta. I remember how much you cried and complained when I reminded you about the consequences of a lack of candor.

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Because once that empty investigation file is opened and examined closely, the truth about how CSAA reached its decision to deny liability will come to the surface.

And one more thing, Steve Lorenzo. If you pause the video when they are examining the defendant's insurance card, it appears to state that he was driving a Toyota. That raises a serious question: was there actually a policy covering the vehicle involved in this collision?

That leads to another question. Did CSAA fabricate a policy position, or was there never a valid policy covering the commercial truck or van that Abdelhalim was operating when he struck me from behind in the crosswalk?

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Appreciate your time.

Regards,

Frank Dylan Rosario
Plaintiff

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From: Dylan Rosario <soltrinox@gmail.com>
Sent: Tuesday, August 4, 2026 6:43 PM
To: Morrissey, Rebekah; pnavaratnasingham@psalaw.net; Tyler O'Connell; Dylan Rosario; Serena Blithe; Veronica Jackson; Maria Reyes; Chad S. Tapp; Stephanie Hengl; Alberta Reyna; Rachael McGregor
Cc: Dylan Rosario
Subject: Re: [EXTERNAL] Fwd: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

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Hey guys, Rosario here. Here is a refinement I have been working on. Let me know what you think.

"The trial court committed a constitutional misallocation of judicial and jury functions by refusing to declare the governing law, treating enacted statutes as evidentiary matter, and thereby invading the exclusive province of the jury to apply the law to the facts. This constituted an abdication of the court's mandatory judicial duty under Evidence Code section 310 and Code of Civil Procedure section 614, depriving Plaintiff of a meaningful jury trial and US Constitutional due process of law."

It hits pretty hard, right? The key is that it has to be read directly through the lens of constitutional law. This is not a side-show theory or a creative reinterpretation after the fact. The issue is what the Court actually said on the record.

The core violation is not that Judge Wong "refused to weigh the facts." It is that he refused to declare the governing law the deliberating jury asked for, then forbade the jury from using that law by misclassifying statutes as "evidence." That is a fair-trial / due-process problem implemented through California's jury-instruction and law-versus-fact architecture.

Judge Wong's own words (RT 11):

***"You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions."
(RT 11, p. 7, ll. 23–27)***

and then he explains why he refused to perform his constitutional duty here :

***"[N]either Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. ... They simply are not permitted to consider that as evidence in the case, period."
(RT 11, p. 8, ll. 4–9)***

The jury asked to be instructed on those statutes. The court answered with a ban and an evidence rationale. That was in violation of the constitution of the USA and California.

Whatever alternative theories you have constructed to explain why the statutes were denied, they directly contradict the Court's stated reasoning. The Court did not say one thing and secretly mean another. The record is clear: the Court expressly stated that the statutes were not to be considered because they were "not evidence."

So the question becomes simple. How do fabricated side-show theories about the denial of the Court's duty somehow erase the actual words spoken by the Court itself? **They do not.**

Either **your legal team fundamentally misunderstands the constitutional separation of functions between judge and jury**, or you are attempting to avoid the consequences of what the record actually says. Either way, the Constitution of the United States and the California Constitution do not disappear because a convenient fantasy theory is created after the fact.

I broke it down for those attorneys who seem to have forgotten what a trial is actually about. Read it carefully. This is the error you failed to explain away, Rebekah.

1. Usurpation of the Jury's Province

A court usurps the jury's province when it prevents the jury from performing its exclusive constitutional function: deciding disputed facts under the governing law. The constitutional role of the judge is to declare the law. The constitutional role of the jury is to apply that law to the evidence. Judge Wong's ruling collapsed those separate functions.

The jury asked for Vehicle Code sections 22107 and 21804(a) because it believed those statutes were necessary to decide Defendant's liability. Rather than declaring the law and allowing the jury to apply it, the Court instructed, "You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions." By eliminating the legal standard itself, the Court predetermined that the jury would never decide whether Defendant violated those statutory duties. The jury could not determine whether Defendant violated duties it was forbidden to consider. That question constitutionally belonged to the jury.

2. Structural Constitutional Error

Although California civil courts generally analyze prejudice under Article VI, section 13 and *Soule v. General Motors Corp.* rather than applying automatic reversal for structural error, the nature of this defect is structural because it affected the framework within which the trial proceeded rather than a single evidentiary ruling. The Court did not merely exclude one exhibit or decline one instruction. It deprived the deliberating jury of the governing legal standard after the jury specifically requested it. The framework of adjudication depends upon evidence being evaluated under the applicable law. Here, that framework collapsed because the governing law was affirmatively and expressly withheld from the jury after their request.

3. Denial of a Meaningful Jury Trial

Article I, section 16 of the California Constitution guarantees more than the physical presence of jurors. It guarantees that jurors will decide disputed facts by applying the governing law declared by the court. The jury expressly requested the Vehicle Code duties governing Defendant's conduct. Instead of receiving those legal standards, it was instructed that it could not consider them. A jury that is denied the governing law cannot constitutionally perform its function. The result is not merely an imperfect jury trial but the denial of a meaningful jury trial.

4. Judicial Nullification of the Governing Law

Although not a formal doctrine, this accurately describes what occurred. Courts frequently discuss jury nullification, where jurors refuse to follow the law. Here, the opposite occurred. The jury requested the governing law and demonstrated its willingness to apply it. The Court refused to provide that law and instead prohibited the jury from considering it. The Legislature enacted Vehicle Code sections 22107 and 21804(a). The jury sought to apply those statutes. The Court nullified their application by forbidding their consideration.

5. Misallocation of Constitutional Functions and Category Error

California's constitutional structure assigns distinct responsibilities. The Legislature enacts statutes. The judiciary declares those statutes as governing law. The jury determines disputed facts and applies the law to those facts. Judge Wong's ruling disrupted each of those assignments.

The Court expressly stated that Vehicle Code sections 22107 and 21804(a) "were not part of the evidence" and that the jury was "not permitted to consider that as evidence...period." That reasoning demonstrates a fundamental legal category error. Statutes are not evidence. Statutes are law. Evidence consists of testimony, documents, photographs, and physical exhibits introduced to prove facts. Statutes establish the legal standards by which those facts are judged. Whether a California statute was physically admitted as an exhibit is legally irrelevant to its status as governing law. By treating statutes as though they were evidentiary exhibits, the Court confused two entirely separate legal categories and used that confusion as the basis for withholding the governing law. The constitutional allocation of authority was fundamentally altered.

6. Failure to Declare the Governing Law / Judicial Abdication

One of the trial judge's most fundamental responsibilities is to declare the law applicable to the issues presented by the pleadings and evidence. That responsibility becomes especially important when a deliberating jury asks a direct legal question. The jury specifically identified Vehicle Code sections 22107 and 21804(a) by section number and requested instruction concerning those statutes.

Code of Civil Procedure section 614 requires the court to provide appropriate legal guidance when a deliberating jury requests clarification concerning a point of law. The jury's request triggered that mandatory judicial duty. Rather than declaring the applicable law, the Court expressly stated that it would not instruct the jury on those provisions and imposed a categorical prohibition against considering them. That refusal was not an exercise of discretion concerning instructional wording. It was an abdication of the mandatory judicial responsibility imposed by California law.

7. Denial of the Rule of Law

The rule of law requires that legal disputes be decided according to governing legal standards rather than judicial preference or omission. The Legislature enacted Vehicle Code sections 22107 and 21804(a) as mandatory standards governing turning movements and right-of-way. Those statutes supplied the legal duties at issue in Plaintiff's negligence claim. The jury recognized their importance and requested them during deliberations. By refusing to declare those statutes and forbidding the jury from considering them, the Court prevented the case from being decided under the governing law enacted by the Legislature. Instead, the verdict was reached without the legal standards controlling Defendant's conduct, undermining one of the most fundamental principles of constitutional adjudication.

Collectively, the Court's statements establish far more than ordinary instructional error. They demonstrate a constitutional misallocation of judicial and jury functions. By refusing to declare the governing law, treating enacted statutes as evidentiary matter, and prohibiting the jury from applying the controlling legal standards to the facts, the Court invaded the exclusive province of the jury, failed to perform its mandatory judicial duties under Evidence Code section 310 and Code of Civil Procedure section 614, deprived Plaintiff of a meaningful jury trial, denied due process of law, and fundamentally compromised the integrity of the adjudicative process itself.

For those attorneys who seem to have forgotten how the law actually works, let me offer a reminder. There is this basic concept in our legal system that the judge stays in the judge's lane, the jury stays in the jury's lane, and attorneys and litigators like myself stay in ours. Each participant has a defined constitutional role.

The jury's role is to make decisions based upon the evidence presented and the law provided by the court. Which brings us directly to Defense Exhibit 500.

You placed that exhibit in front of the jury. The jury heard the testimony, reviewed the statutory provisions contained within the exhibit, and then did exactly what juries are supposed to do. They asked the Court for the law and instructions necessary to apply those statutes to the facts.

And then Judge Wong decided he was going to rewrite the rules of the game.

Rather than acknowledge the obvious issue created by the record, the Court manufactured a justification for refusing to instruct: the statutes were "not part of the evidence" and therefore the jury could not consider them.

The irony is almost impossible to overstate.

The very laws the defense provided to the jury became the same laws the Court later claimed the jury was not allowed to consider. The jury was literally holding the material in its hands, had heard testimony regarding it, and specifically requested guidance on how to apply it. Yet the Court somehow concluded that the jury could not consider those statutes because they were not evidence.

That is not a minor procedural disagreement. That is a fundamental collapse of the distinction between law and evidence. The Court created the problem, and then relied on that same manufactured problem as the reason to avoid correcting it.

So, Rebekah, Alberta, Priya, Tyler, and everyone else involved: no amount of insurance funding, litigation strategy, or post hoc explanations can reverse what the Court failed to do. The Court was required to properly adjudicate the merits of the case and provide the jury with the legal framework necessary to decide the issues before it. My claims were never fully adjudicated under the governing law. The Court's own words demonstrate that the jury was prevented from applying the legal standards necessary to decide the case. **PERIOD.**

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and victim statements made contemporaneously with the collision. The absence of a reasonable investigation is a violation of the law.

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Appreciate your time.

Regards,

Frank Dylan Rosario
Plaintiff

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From: Dylan Rosario <soltrinox@gmail.com>
Sent: Tuesday, August 4, 2026 1:15 PM
To: Morrissey, Rebekah; pnavaratnasingham@psalaw.net; Tyler O'Connell; Dylan Rosario; Serena Blithe; Veronica Jackson; Maria Reyes; Chad S. Tapp; Stephanie Hengl; Alberta Reyna; Rachael McGregor
Cc: Dylan Rosario
Subject: Re: [EXTERNAL] Fwd: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

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External email

CSAA PANEL COUNSEL (and Alberta),

Because I am always very transparent with you at CSAA and your failed panel counsel, I wanted to give you a heads-up on what you should expect.

It is so remarkably easy to defeat your argument that I wanted to give it to you ahead of time so you can read it before you receive the actual reply. Maybe you can sit on it for a few weeks and let it burn itself into your brain.

Causal chain, in this order:

1. Plaintiff sought instructional treatment of turning and yielding duties supported by Vehicle Code sections 22107 and 21804(a).
2. The court omitted that concrete yardstick from the charge and proceeded with a package that left a vacuum at the center of liability.
3. Defense Exhibit 500, plaintiff's complaint designated by the defense, placed those statute numbers before the jury and was available in deliberations.
4. The deliberating jury asked Jury Question #1 naming 22107 and 21804(a) and requesting instruction.
5. The court categorically prohibited consideration and refused instruction, stating the statutes were not part of the evidence.
6. RT 11 colloquy is diagnosis of the vacuum pathway, or, even if hostilely paraphrased, cannot cancel CCP section 614.
7. Prejudice follows because the jury itself identified the missing law as material.

That is the bottom line, Rebecca.

Nothing you allege in your reply carries any legal weight because an outright, categorical prohibition on the governing law constitutes a structural, reversible error as a matter of law. Even if we were to accept every single self-serving, ad hominem mischaracterization you made about me as entirely true, a trial court is strictly forbidden from barring a deliberating jury from accessing and applying the controlling

statutory standards raised by the evidence before them. Predecessor counsel at PSA Law handed you this exact liability when they introduced the complaint into the evidentiary record, building on the pleadings originally drafted by Dolan Law Firm.

No matter how desperately you try to construct a narrative claiming that I brought this outcome upon myself, no theory of waiver or procedural technicality grants a trial judge the legal authority to enforce an unlawful ban on statutory authority. Nothing in your response permits an appellate court to overlook fundamental trial procedure and mandatory statutory standards, which form the bedrock of the constitutional due process to which I am unequivocally entitled.

Now I expected better from you, Rebecca I mean, I can understand Tyler making mistakes. He only graduated last school a couple years ago, but I mean you've been around for a decade. What makes you think that the district court is going to overlook the fact that Judge Wong decided that he was also gonna become the jury and sidestep the constitution of the United States of America. I mean really who is going to guess that he was going to be such a fool.

Anyways, thanks for the enjoyable yet tone, deaf argument that you presented against the category error of failing to instruct the jury. Nothing you stated in your reply can whitewash the error made by the court. And now a group of very articulate attorneys who have now become judges are going to review. And trust me I'm sure they know exactly why Wong is no longer on the bench.

The only person you have to blame is yourself, Priya, Alberta, and of course, the late judge Wong. In fact, I'm kind of happy that you tried to go after personal attack with your little sideshow theories, because I knew that you didn't have any basis to attack Judge Wong's own words and I was actually concerned that somewhere deep down inside of the arcane law books that I have been reading over at the public law library in San Francisco, have some little hidden allowance for a judge to deny giving instructions on the law to a jury when they ask for it. And well that concept doesn't exist because it's not part of the law Rebecca. Duh!

From the Day 11 transcript (RT 11), Judge Wong's own words on Jury Question #1 are:

1. The categorical ban (RT 11, p. 7, ll. 23–27)

In that matter, with regard to Jury request form number one, the Court answered: You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions.

2. The stated reason: treated as “not evidence” (RT 11, p. 8, ll. 4–9)

Further, I will point out -- I don't think I needed to point this out -- but neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence.

They simply are not permitted to consider that as evidence in the case, period.

Adjacent confirmation (RT 11, p. 7, ll. 28 to p. 8, l. 1)

That is a sufficient instruction for the Jury to abide by.

What those words show: He did not answer the jury's request for law by instructing on Vehicle Code §§ 22107 and 21804(a). He forbade consideration of those statutes and refused to instruct on them, on the express ground that they “were [not] part of the evidence” and that the jury was “not permitted to consider that as evidence ... period.”

So any claim by Tyler and Chad that the matter was fully adjudicated is absolute absurdity and nonsense and they know it. As for your reply, Rebecca, what judge Wong did, that was a violation of the black letter law of the constitution of the United States and California. Period.

Have a good day.

F.D. Rosario
Plaintiff

On Tue, Aug 4, 2026 at 12:36 PM Dylan Rosario <soltrinox@gmail.com> wrote:
CSAA and Panel Counsel,

Upon a closer and more meticulous reading of your latest response, I am left far less persuaded than utterly appalled by your audacity. Judge Wong explicitly articulated his rationale on the record for excluding the governing law, so watching you arrive now with a suite of post-hoc theories that directly contradict his recorded words is a remarkably desperate attempt to rewrite history. Rebecca, it takes an extraordinary level of foolishness to weave these nested, misdirected justifications while completely failing to answer the primary issue at hand, which is the undeniable signature of a crumbling defense. Tellingly, you spend almost no effort addressing governing California jurisprudence, choosing instead to shift the burden of the court's legal errors onto an injured, self-represented litigant who was forced to master civil procedure in a matter of weeks. Sound logic requires no law degree, and your transparent attempts to mischaracterize my position will never alter the record. You cannot seriously believe that an appellate panel will be distracted by your sideshow narrative when Judge Wong's own explicit words condemn your position.

Your firm appears to require a fundamental, remedial lesson in California trial procedure. CACI instructions are merely standardized forms rather than substantive restrictions on the law, whereas a trial judge maintains an affirmative, mandatory legal duty to instruct the jury on all material principles of law supported by the evidence. When a deliberating jury explicitly requests guidance on applicable statutory standards, denying that request based on procedural technicalities violates statutory mandates, due process, and the fundamental constitutional right to a fair trial. The reality of this record remains catastrophic for your side across every phase of the proceedings. **When Judge Wong entertained questions from the deliberating jury, he committed egregious misconduct by doing so without a court reporter present,** repeating his error from the prior evening when he omitted the requested CACI instructions and failed to instruct the jury on how to evaluate verbal testimony. Throughout the trial, the defendant explicitly testified that he was making a turn, and under cross-examination he never denied his maneuver or speed. The absurd narrative that he was acting under duress when confessing to 911 unspooled completely when it was revealed he never mentioned any coercion to the responding officers, and counsel's lack of candor regarding the subpoenaed 911 recordings exposed the bad faith driving this defense from the outset.

Your entire position rests upon a dangerous legal fallacy that distorts basic trial procedure. The judge is not the jury and holds zero authority to act as the arbiter of factual truth. Under Code of Civil Procedure section 614, when a deliberating jury requests clarification on a point of law, the court has an absolute, mandatory duty to provide that instruction. A deliberating jury that identifies governing Vehicle Code sections by number and explicitly asks for guidance has formally identified a point of law that the court

is legally bound to clarify. Furthermore, under Evidence Code section 310, questions of law belong exclusively to the court, meaning statutes are mandatory governing standards rather than physical exhibits requiring formal evidentiary admission. Judge Wong's ruling telling the jury it could not consider Vehicle Code sections 22107 and 21804(a) because they were not part of the evidence represents a total, structural collapse of basic jurisprudence. It improperly converted the court's initial instructional omission into a permanent, unlawful prohibition, barring the jury from applying the governing law to the facts before them.

The respondent brief attempts to lecture the Court of Appeal with a convenient fairy tale, asserting that this appeal is a self-inflicted wound born of waiver and invited error, but the trial record throws that fiction right back in your face. Before jury instructions were settled, I specifically requested coverage of Vehicle Code sections 22107 and 21804(a), which define the statutory turning and yielding duties of ordinary care in a pedestrian collision. The court omitted those duties, creating a glaring instructional vacuum. The defense then walked straight into that trap by designating Defense Exhibit 500, my own complaint, arguing from it during closing statements, and handing it directly to the deliberating jury. That complaint explicitly pleaded those exact Vehicle Code sections. You did not merely deny liability, you placed the very document citing those statutory duties directly into the jury's hands. When the jury predictably found the statutes where the defense left them and asked whether to consider them in determining negligence, Judge Wong declared those statutes off-limits. You brought this appellate reckoning upon yourselves the moment you placed Exhibit 500 before the jury, and no amount of defense rhetoric regarding procedural technicalities can erase that catastrophic, self-inflicted error.

Representing a billion-dollar enterprise does not grant your firm a monopoly on vigilance, nor does it shield you from accountability. Your unfounded accusation labeling an injured, unrepresented litigant an opportunist is classic corporate psychological projection, signaling a calculated strategy to railroad an individual through a compromised judicial process. You conveniently ignore that two licensed attorneys sitting on that jury recognized the court's blatant misconduct and dissented against your client, specifically noting the judge's categorical legal errors. In fact, one of those attorney-jurors was so appalled by the court's refusal to properly apply the law that they joined me in reporting Judge Wong's misconduct to the Commission on Judicial Performance. Judge Wong acted as though he was superior to the law, arrogantly substituting his personal view of the evidence for that of the trier of fact, which explains precisely why he no longer holds his judicial seat. The administrative and disciplinary complaints pending with the State Bar of California against predecessor counsel at PSA Law and Michael Chambers document a persistent, systemic breach of the duty of candor that Porter Scott has now recklessly adopted and perpetuated.

This appeal is merely one component of a broader, strategic legal campaign that has already forced CSAA to admit it immediately adopted an adverse litigation posture, representing a flagrant violation of the California Fair Claims Settlement Practices Regulations under Title 10 of the California Code of Regulations and Insurance Code section 790.03. Tyler, Chad, and the rest of Porter Scott have now made matters infinitely worse for CSAA by putting the insurer's name on documentation falsely declaring me a vexatious litigant. Under Code of Civil Procedure section 391, vexatious litigant designations require strict statutory prerequisites involving repeated, unsuccessful filings, not a single vigorously litigated case where the defense made disastrous tactical errors. Throwing around the vexatious label out of sheer panic over your own bad-faith exposure only signals to the court how terrified you are of your position. Attempting to use pre-filing orders to lock the courtroom doors is a pathetic joke, and multiple independent attorneys who have reviewed this record are laughing at Porter Scott for bringing this crisis upon themselves by trying to weaponize statutory immunity where it legally

cannot apply.

Under California jurisprudence and the primary right theory governing res judicata, a litigant is fully permitted to pursue distinct causes of action as they mature over time. Bad faith, statutory insurance violations, and intentional misconduct that ripen through the defense's own recorded admissions create brand new, actionable liability, and those admissions will operate to judicially estop your self-serving, retroactive contradictions. Anyone expecting a swift exit from this conflict fundamentally misunderstands due process under California procedure. The anti-SLAPP statute under Code of Civil Procedure section 425.16 guarantees an immediate right to interlocutory appeal, ensuring that your bad-faith attempts to immunize unlawful conduct will be scrutinized immediately. Every newly ripened claim generated by your aggressive posture against an unrepresented party before a lawsuit was even filed gives a jury the exact evidence needed to find institutional oppression. The primary, high-value claims remain squarely on the table, and your latest appellate filings have offered up easily dismantled theories that expose the complete absence of actual risk management in your defense strategy.

This represents merely one chapter in a much broader legal conflict, and the coming quarters will bring unprecedented legal momentum across every available forum. While defense counsel at Porter Scott will undoubtedly attempt to continue billing CSAA by the hour, treating a corporate client as nothing more than a private revenue stream carries disastrous long-term consequences that short-term defense fees will never cover.

Now that I have received your replies and we have locked in the defense's position on cases 801 and 802 as well as on the pending appeal, you should finally begin to understand how I practice law. Make no mistake, everyone is watching CSAA needlessly drag this out, and you still have the specter of the California Supreme Court hanging directly over your heads. The Superior Court and the Court of Appeal are subordinate tribunals that are strictly bound to enforce California Supreme Court precedent and settled black-letter law. Priya liked to repeat that principle when it suited her, so I am here to remind her that it was her own choice, along with her sidekick Alberta, to place the governing law directly in front of the jury. Whoever made that tactical blunder is the person you have to blame for this appellate nightmare, alongside Judge Wong, whose judicial career has already come to an end.

When it comes to the direct action against CSAA, you can thank Tyler and Chad, the self-proclaimed legal geniuses who decided to hide behind anti-SLAPP immunity. Those two attorneys failed to realize that asserting statutory immunity over pre-litigation communications immediately proves CSAA adopted an adverse, bad-faith litigation posture before ever conducting a fair investigation or communicating with the claimant. The only parties who brought a self-inflicted wound upon themselves are your client CSAA and its panel counsel, and we will soon see if the public, the Department of Insurance, and the appellate courts agree.

Your reliance on procedural gamesmanship and arguments over CACI instruction numbers is a pathetic attempt by Rebecca to misdirect the court away from a categorical legal error. You are foolish if you believe I cannot see right through your stacked layers of fantasy logic designed to justify withholding the governing law from a deliberating jury. Weaving together procedural trial anomalies in a desperate effort to whitewash a fatal judicial error will not save you, and plenty of peer attorneys are going to laugh at your filings when they see how flimsy your position truly is.

The entire defense team needs to advise CSAA to stop digging this hole and initiate a serious, good-faith conversation about resolving this matter through a real settlement offer. The next procedural step will

lock you into a ruinous, highly expensive process where you will be forced to explain under oath why CSAA believes it is above the law. The moment we obtain the empty claim file and reveal the manufactured justifications behind your denial, the second shoe drops. A plaintiff can absolutely prevail on both the underlying personal injury claim and the bad-faith insurance cause of action, and when those two liabilities collide before a jury, it provides clear proof of institutional oppression, which drastically amplifies punitive damages.

Tyler/Chat your failure to address the merits of an empty investigation file and a zero-dollar settlement stance when your insured confessed on record to striking a pedestrian in a crosswalk will now face the full, unyielding scrutiny of the California Department of Insurance and the higher courts. I have no intention of surrendering my fundamental constitutional rights, and I will see you in court boys and girls.

Have a good day.

F.D. Rosario
Plaintiff

On Mon, Aug 3, 2026 at 7:50 PM Dylan Rosario <soltrinox@gmail.com> wrote:
CSAA Panel Counsel,

The defense's reply is a masterclass in misdirection and a dismal failure of legal analysis. Desperate to escape the explicit trial transcript, counsel has concocted a series of absurd, retroactive fantasies to rationalize Judge Wong's refusal to instruct the jury following their explicit request.

Opposing counsel's brief is pure fiction. You have manufactured an array of post-hoc rationalizations, imagining unpreserved errors, procedural defects, and silent judicial theories in a transparent attempt to perform mind-reading on the trial court. It is astonishing that counsel had the audacity to submit a filing built entirely on imaginary concepts that find zero support in the record.

No amount of creative writing, legal gymnastics, or manufactured fantasy can erase what Judge Wong actually said on the record. You do not get to substitute your own post-hoc theories for the judge's actual words.

What the defense cowardly refuses to confront is the stark, unassailable reality of the trial transcript. Judge Wong did not rely on any of counsel's newly minted theories. He explicitly, succinctly, and unequivocally stated the exact basis for his ruling: he claimed the statutes were "not in evidence."

That ruling was not merely technically wrong; it was legally indefensible:

1. Violation of Statutory Duty: Refusing to provide the law upon the jury's explicit request was a direct failure of the court's mandatory duty under CCP § 614.
2. Factually Unsupportable: Claiming the law was "not in evidence" is utterly ludicrous, particularly given that those exact statutory numbers were presented directly to the jury.

The record speaks for itself, and it completely guts your position. Judge Wong explicitly stated why he denied the jury the law, and the reason he gave is flatly contrary to California law. Counsel's desperate attempt to divine what was secretly "going on in the judge's head" is legally bankrupt, factually hollow, and entirely powerless to rewrite an egregious judicial error memorialized in the trial transcript.

The reversible event is the court's categorical ban after Jury Question #1. The court stated its reason: Vehicle Code sections 22107 and 21804(a) "were [not] part of the evidence" and jurors were "not permitted to consider that as evidence in the case, period." (RT 11, p. 8, ll. 4–9.) That is a category error under Evidence Code section 310 and a breach of the CCP section 614 duty to answer a deliberating jury's request for law. The ROB does not defend that reason. It substitutes form-number waiver, colloquy spin, and harmlessness. Those substitute reasons were not the court's, and even if credited they cannot authorize forbidding named statutory duties after the jury asked to be instructed on them.

I expected to see better, but instead, I see a bunch of fabrications literally contradicting the judge's own words regarding his rationale. He explicitly stated the reason he denied the law to the jury. Unfortunately, he is no longer on the bench to answer for that, and the judicial board complaint that I filed on the top floor next to Gavin Newsom's office directly addressed these failures by Judge Wong. He silently left his post a year and a half early; early retirement is what they call it. I am well aware he has his immunity, but his rulings and his failures in his duty to adjudicate this case cannot bail him out or be silently put to pasture. And in my eyes, the California Superior Court of San Francisco is a better place without him.

So, regardless of all the fabrications that you've created to justify his reasoning, his own words outlive him in the courthouse, and it's now time for the reckoning. You failed to address how Judge Wong had the authority to withhold the law from the jury when they asked explicitly for it. Your failure to address this directly in your reply tells me all I need to know.

I think you've already conducted yourself accordingly. Thank you.

Regards,

Franciscus Dylan Rosario
Plaintiff in pro per

On Mon, Aug 3, 2026 at 10:30 AM Morrissey, Rebekah <Rebekah.Morrissey@csaa.com> wrote:

Mr. Rosario-Our brief is complete and will be filed today.

Rebekah A. Morrissey | Attorney

Koyama & Costello

P.O. Box 24508 | Oakland, CA 94623-1508

Direct: 916-480-1063 | Cell: 916-336-6430 | Office: 916-481-5330 | Fax: 916-481-0990

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All documents served electronically must be sent to the following addresses: rebekah.morrissey@csaa.com, julie.reece@csaa.com, & alexandria.felix@csaa.com.

From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, August 3, 2026 10:29 AM

To: Morrissey, Rebekah <Rebekah.Morrissey@csaa.com>; Garnica, Erika <Erika.Garnica@csaa.com>; pnavaratnasingham@psalaw.net

Cc: Dylan Rosario <soltrinox+legal@gmail.com>

Subject: Re: [EXTERNAL] Fwd: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

External Email

Dear Counsel,

The court previously granted a continuance for the respondent's brief in Case No. A173827, making the submission due today, August 3, 2026.

Please ensure that proper electronic service is completed by 5:00 PM today to avoid a default failure to reply.

Sincerely,

Frank Dylan Rosario
Plaintiff

On Thu, Jul 2, 2026 at 9:02 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Dear Counsel,

Please find attached the complete version of my formal objection, which has now been submitted to the court.

I strongly object to your last-minute request for a continuance. Please be advised that all court updates and filings are being monitored continuously, and any future motions or requests will be responded to immediately.

Please do not try those last-minute tactics on me again. I would rather not expose the gamesmanship tactics of your entire company on the record. I will say that many people are literally disgusted, at least those who have read about this case.

Please stop giving them more ammunition against you. You have every opportunity to make an offer and handle some form of settlement. Even if you buy yourself a few more days, you are still going to have to overcome the problem of what Wong said on the record. That is an impossible hill to climb.

Time is up. Not to mention, you have now taken a position on the silent witness possession due to the admissions you made by asserting an anti-SLAPP defense. You have now admitted on the record that what was said by your panel counsel is true: they stated to the judge that they had no idea where the 911 records came from, and then later admitted to having that information prior to making that statement to the tribunal. Effectively, your panel counsel has now admitted on the record to perjury

and fraud on the court. It is all on the record.

Maybe you just haven't been paying attention to this case because you didn't think a self-represented (pro per) litigant would know how to present the logical contradictions you have now made in two different cases. Regardless of what happens regarding the decision on whether you are allowed to file a late reply, the fact remains that you failed to pay attention and do your job. That is the exact same thing your investigator did.

So now, on the record, you have admitted to perjury and a lack of candor to the tribunal. By admitting that your attorney had no idea where the 911 records came from, you admit that you never conducted a full investigation. This contradicts your claim that you completed your investigation in 2021, when you sent me a letter just two weeks after the collision and only 10 days after I got out of the hospital after almost dying.

Now here we are. After all your denials, we are at the point where you must come clean and admit that you failed to fulfill your duty to me. You had an obligation, based upon the records in your hands, to pursue all available investigative material and sources, not just those beneficial to your client, but also those that might be adverse to your insured's position. You cannot simply stop when you get the police report if you haven't pulled the 911 record that the report directly references.

We all know that you failed to do your job. It is evident, and you have admitted to it by your own statements in MIL 6 and MIL 17, where you clearly stated that you did not perform the investigation necessary to collect your own insured party's confession that he struck me while I was in the street as a pedestrian. You will remember that my voice is on that recording as well, telling the 911 operator that your client hit me. You see, my story hasn't changed. It remains the same because I have to live through it every single day, continually putting you and your company in front of more judges and groups who will look further and further into what you are doing.

I have officially contacted the California Department of Insurance Investigation Division about your organization. I have mailed them, and I am setting up a direct interview with one of their field officers. This will happen the moment I see a response from the judge on cases 801 and 802 that is adverse to my position, due to your organization being a commercial corporation that sells insurance. I am now involving the official insurance board to ensure the court understands the importance of what that means, and they can absolutely explain to any judge in the State of California that you may not use an anti-SLAPP motion to avoid your reckless disregard for the truth.

Regards,

Frank Dylan Rosario
Plaintiff and Petitioner

On Thu, Jul 2, 2026 at 4:14 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Ms. Morrissey,

Your characterization of the timeline is inaccurate. The additional time was required because I had to request that the court augment the record to include documents that the trial court failed to

produce in the Clerk's Transcript. Characterizing a motion to augment the record due to a trial court error as a request for a continuance is incorrect.

Your office has been provided with all necessary materials, and I have been entirely transparent throughout this process. Resource or staffing constraints within your firm do not justify delaying these proceedings any further.

I have been waiting a very long time for a resolution, and I continue to suffer daily from permanent spinal injuries. Further delaying adjudication causes me direct prejudice. There is no good cause for an extension, and I expect your response to the brief to be filed without further delay.

Sincerely,

Franciscus Dylan Rosario
Self-Represented Appellant

On Thu, Jul 2, 2026 at 2:50 PM Morrissey, Rebekah <Rebekah.Morrissey@csaa.com> wrote:

Mr. Rosario-The record in this matter is well over 1000 pages and you provided two augmentations of the record. Further, you provided both a brief and supplemental briefing after yourself requesting and receiving two extensions of time to submit your brief: a November 19, 2025, extension of 30 days and a December 22, 2025, extension of time for 61 days to February 23, 2026, for a total of 91 days. However, you did not submit your opening brief until April 2, 2026, resulting in over 4 months of additional time to complete your brief from the original due date.

I am requesting the exact same amount of time you were granted to complete your brief due to my work load and family circumstances. I did not oppose your request for extensions, as they are quite common in appellate court and generally a matter of professional courtesy. I understand your position, but I have submitted my request to the court and will wait to see what their ruling is.

Rebekah A. Morrissey | Attorney

Koyama & Costello

P.O. Box 24508 | Oakland, CA 94623-1508

Direct: 916-480-1063 | Cell: 916-336-6430 | Office: 916-481-5330 | Fax: 916-481-0990

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, July 2, 2026 1:02 PM

To: Morrissey, Rebekah <Rebekah.Morrissey@csaa.com>; pnavaratnasingham@psalaw.net; Garnica, Erika <Erika.Garnica@csaa.com>

Cc: Dylan Rosario <soltrinox+legal@gmail.com>

Subject: [EXTERNAL] Fwd: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

External Email

Dear Counsel,

I am writing to formally object and confirm that I do not stipulate to any further extensions of time for the defense.

Given the extensive resources available to CSAA, including dedicated legal teams, there is no justifiable reason for an inability to respond to the opening brief. The standard response time, combined with the 90 days of extensions already granted, has provided more than sufficient time to prepare and submit a response.

Furthermore, please note that sending documents via physical mail does not constitute proper service when electronic service methods are established and available.

I object to any further extensions and expect the filing of your response today. This email serves as our meet-and-confer regarding this matter. I do not appreciate the sudden request for a second continuance after having already granted ample time. I will formally object to any further extension requests as they cause me absolute prejudice, particularly given the lack of prior communication from your office despite the 3 months of opportunity to reach out via email.

Please conduct yourselves accordingly.

Sincerely,

Dylan Rosario

----- Forwarded message -----

From: <info@truefiling.com>

Date: Thu, Jul 2, 2026 at 12:36 PM

Subject: TrueFiling: Service Notification - CA 1st District Court of Appeal - Case No. A173827 - Rosario v. Abdelhalim et al.

To: <soltrinox@gmail.com>

The following document(s) listed below are being electronically served to you for case **A173827** by **Franciscus Rosario** from the **CA 1st District Court of Appeal**.

- Document Title: ContinuanceObjection-001
Link: [Click to download document](#)
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The following people were served the above document(s):

- Erika Garnica - e-Serve erika.garnica@csaa.com
- Franciscus Rosario - e-Serve soltrinox@gmail.com
- Priya Navaratnasingham - e-Serve pnavaratnasingham@psalaw.net
- Rebekah Morrissey - e-Serve rebekah.morrissey@csaa.com

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From: Dylan Rosario <soltrinox@gmail.com>
Sent: Monday, July 27, 2026 2:54 PM
To: Tyler O'Connell; Chad S. Tapp; Stephanie Hengl; Serena Blithe; Maria Reyes; Monique Schubert; Veronica Jackson; Dylan Rosario; calendar302@sftc.org
Subject: CGC-25-631802 — Aug. 26, 2026 Dept. 302 (CCP § 391) — Request to Withdraw Motion
Attachments: 14-SAFE-HARBOR-128-7-VEXATIOUS-JULY27-2026.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

External email

To: Tyler J. O'Connell; Chad S. Tapp
Cc: Mason Schubert; Sarah J. Blithe (Porter Scott service list)
Subject: CGC-25-631802 - CCP 128.7(c)(1) Safe Harbor (Deadline Aug. 17, 2026) + Position for Aug. 26 Dept. 302 (CCP 391) - Request to Withdraw

Counsel:

I write regarding Defendant CSAA Insurance Exchange's July 21, 2026 Motion to Declare Plaintiff a Vexatious Litigant and to Require Security, noticed for August 26, 2026, at 9:00 a.m. in Department 302 (Transaction ID 80094857). Plaintiff's operative opposition was filed and served July 21-22, 2026 (including the Supplemental MPA and Exhibits F-N).

Attached / concurrently served: Plaintiff's Safe Harbor Notice under Code of Civil Procedure section 128.7(c)(1) (and section 128.5 as applicable), dated July 27, 2026, with embedded proof of service (electronic mail and first-class mail). That notice is the statutory safe-harbor demand. This email summarizes Plaintiff's position for Department 302 and does not expand the filed opposition papers.

Statutory safe harbor (CCP 128.7(c)(1))

Under CCP section 128.7(c)(1), you have twenty-one (21) days from service of the safe-harbor notice to withdraw or appropriately correct the challenged papers.

SAFE-HARBOR DEADLINE: **August 17, 2026, at 5:00 p.m. Pacific Time.**

If the Section 391 Motion, supporting papers, and proposed statewide order are not withdrawn or corrected by that deadline, Plaintiff will file a noticed motion for sanctions under CCP sections 128.7 and/or 128.5 and will ask the Court for monetary and nonmonetary sanctions, including fees and costs incurred because of the Section 391 Motion.

Please confirm, in writing and by calendar action in Dept. 302, whether Defendant will withdraw the section 391 motion, withdraw the proposed statewide blank-bond / pre-service screening order, and confirm that the MC-010 cost memorandum will not be offered as proof of vexatiousness.

What Department 302 must decide

Defendant asks the Court to (1) designate Plaintiff a vexatious litigant under CCP section 391(b)(2) and/or (b)(3); (2) require security under section 391.3; and (3) impose blank-bond / statewide pre-service screening of the kind governed by section 391.7. Those remedies chill court access. California requires strict statutory predicates. Volume, adjectives, and anti-SLAPP success are not enough. (Morton v. Wagner (2007) 156 Cal.App.4th 963; Shalant v. Girardi (2011) 51 Cal.4th 1164; Cal. Const., art. I, section 3.)

Five reasons the motion cannot be granted

1. Section 391(b)(2) fails: wrong primary right, wrong defendant, incomplete finality.

A (b)(2) finding requires repeated relitigation, after final determination, of the same determination or claim against the same defendant. The personal-injury primary right in CGC-21-594102 was freedom from negligent driving against Subhi Abdelhalim. The primary rights in CGC-25-631802 concern CSAA's claims handling: certification of a "concluded" investigation without foundational objective evidence, and concealment of an empty claim file. Shared evidence (911, BWC, CAD) can support different primary rights. (Crowley v. Katleman (1994) 8 Cal.4th 666; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888; Park v. Board of Trustees (2017) 2 Cal.5th 1057.) The PI judgment ran against the insured driver, not CSAA. Appeal A173827 remains pending. July 1, 2026 anti-SLAPP practice on a communication-framed FAC is not final adjudication of empty-file institutional-omission theories. (Baral v. Schnitt (2016) 1 Cal.5th 376; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995.)

2. Section 391(b)(3) fails: docket and email volume are not Morton flagrant abuse.

Section 391(b)(3) requires unmeritorious filings or tactics that are frivolous or solely intended to cause unnecessary delay. Morton requires flagrant abuse. Filing counts, email counts, and labels ("torrent," "deluge," "AI-generated," "harassing") do not establish frivolousness. Discovery and briefing directed to whether CSAA obtained 911 audio, BWC, and CAD before the February 2021 "concluded" certification are not "unnecessary" where the gravamen is investigation compliance and concealment. Notices of controlling authority, including JKC3H8 and CCP section 425.17(c), are candor obligations, not delay tactics.

3. Defendant manufactured the "volume" it cites.

The verified defense stack against Plaintiff's leave / SAC path included three Defendant-noticed motions (anti-SLAPP April 9; demurrer April 13; CCP section 436 strike April 22), plus opposition to leave. Plaintiff's subsequent papers were predominantly obligated responses. A party may not create the condition for a (b)(3) volume finding by successive blocking motions, then seek litigant-status sanctions for the predictable response. The April-May 2026 email sequence (Plaintiff's Exhibits F-N), including the April 30 express threat to move for vexatious-litigant designation (Exhibit K), confirms that the July 21 filing continues a gatekeeping campaign, not a sudden discovery of Morton abuse.

4. Section 391.3 security never arises; July 1 does not prove "no reasonable probability."

Security under section 391.3 requires both a vexatious finding and no reasonable probability that Plaintiff will prevail against the moving defendant. (Shalant.) If (b)(2) and (b)(3) fail, security never arises.

Separately, the July 1, 2026 order struck the FAC as framed around communication and litigation conduct; it did not perform claim-by-claim Baral / Bonni adjudication of non-communicative concealment, empty-file certification, or investigation-duty theories. An anti-SLAPP grant is not a merits finding that Plaintiff has no reasonable probability on those distinct primary rights. Plaintiff's July 6, 2026 letter placed Defendant on notice of that separation before this motion was filed.

5. The proposed order is unauthorized and overbroad under section 391.7.

Defendant's proposed order seeks blank statewide security and universal pre-service screening. Case-specific security under section 391.3 is not a substitute for a section 391.7 prefiling order. Statewide screening requires the findings and procedures that statute supplies. (Shalant.) The Notice of Motion states narrower grounds; the proposed order seeks extreme statewide relief. That notice/relief mismatch, and the conflation of sections 391.3 and 391.7, independently require denial of the proposed order in full.

State Bar of California notice (reserved if papers are not withdrawn)

Separately from court sanctions under CCP 128.7 / 128.5, and without converting this email into a negotiation for silence: if the Section 391 Motion and proposed order are not withdrawn or appropriately corrected by the August 17, 2026 safe-harbor deadline, Plaintiff is prepared to file an attorney-misconduct complaint with the State Bar of California, Office of Chief Trial Counsel (OCTC), against the attorneys of record responsible for presenting and maintaining those papers, including Tyler J. O'Connell and Chad S. Tapp of Porter Scott, based on the court record and the following provisions:

Rules of Professional Conduct, rule 3.1 and Business and Professions Code section 6068(c) (meritorious claims and contentions): maintaining litigant-status sanctions / security / statewide screening without a nonfrivolous basis under CCP sections 391(b)(2), 391(b)(3), 391.3, and 391.7, after notice of distinct primary rights and incomplete adjudication.

Rule 3.3 and section 6068(d) (candor toward the tribunal): presenting papers that, as opposed in Plaintiff's filings, mis-cite judicially noticed orders / exhibit letters, misstate the governing statutory subdivision, and seek relief beyond the noticed grounds, thereby risking misleading the Court by artifice or false statement of law or fact.

Rule 3.2 (delay of litigation): using status-sanction practice and related communications to burden and delay adjudication of empty-file / claims-handling issues rather than meet the statutory predicates.

Rule 4.4(a) (respect for rights of third persons): using means that have no substantial purpose other than to embarrass, delay, or burden a self-represented plaintiff, including the April 30, 2026 vexatious-litigant threat (Exhibit K), the cease-filings / access-limiting email sequence (Exhibits F-N), and the July 21 Section 391 Motion seeking statewide screening.

Rule 8.4(a) and (d) (misconduct): violating or attempting to violate the Rules of Professional Conduct, and engaging in conduct prejudicial to the administration of justice, including chilling petition rights (Cal. Const., art. I, section 3) through an unsupported status-sanction request.

Any OCTC complaint will attach the Section 391 moving papers; Plaintiff's opposition cohort; Exhibits F-N (including Exhibit K); the July 1, 2026 order; the July 6, 2026 letter; the July 27 safe-harbor notice and proof of service; and any August 26, 2026 minute order or subsequent papers.

Nothing in this Bar notice asks you to refrain from lawful advocacy. It puts you on notice that maintaining the challenged papers after the safe harbor will trigger Plaintiff's reserved professional-conduct report based on the court record.

What Plaintiff asks before the safe-harbor deadline / August 26

Please advise in writing, on or before August 17, 2026, 5:00 p.m. Pacific Time (and sooner if practicable), whether Defendant will:

Withdraw the Motion to Declare Plaintiff a Vexatious Litigant and to Require Security;

- 1. Withdraw the proposed order seeking blank statewide bond and universal pre-service screening;**
- 2. Confirm that the MC-010 Memorandum of Costs (\$1,137.46) will not be offered as evidence of vexatiousness on August 26 (costs are a separate CRC 3.1700 calendar; attorney's fees, if any, remain on the separately noticed fee motion).**
- 3. If Defendant declines, Plaintiff will stand on the filed opposition and [Proposed] Order Denying Motion; will ask Department 302 to deny designation under section 391(b)(2) and (b)(3), deny security under section 391.3, and deny the proposed order in its entirety; and, after the safe-harbor period, will pursue CCP 128.7 / 128.5 sanctions and the reserved State Bar / OCTC complaint as stated above.**

This communication is for meet-and-confer, safe-harbor, and record purposes. It is not a settlement offer under Evidence Code section 1152. It is without waiver of any argument, objection, or right in CGC-25-631802, CGC-25-631801, appeal A173827, or related proceedings.

Proceed with caution,

Franciscus Dylan Rosario
Plaintiff in propria persona
Case No. CGC-25-631802
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Wednesday, July 22, 2026 6:10 PM
To: Serena Blithe; Tyler O'Connell; Veronica Jackson; Maria Reyes; Chad S. Tapp; Monique Schubert; Stephanie Hengl; Rebekah.Morrissey@csaa.com; investigations@insurance.ca.gov
Cc: Dylan Rosario
Subject: Re: Rosario v. Chambers, et al. Case No. CGC-25-631802 - Motion for Vexatious Litigant
Attachments: 11-SUPPLEMENTAL-MPA-ACCESS-DEFENSE-EMAILS.pdf

Follow Up Flag: Follow up
Flag Status: Flagged

External email

Subject: CGC-25-631802 — Operative Supplemental Served — Empty File / Avoidance Continuum

Hey boys and girls. Rosario here. Read this before you pick your next move.

You already got the older version by electronic service. Here is the updated filing from today. It is now the operative supplemental. It includes the language I just described. You and your analyst can read the implications yourselves.

One line governs this entire continuum: **Avoidance of the Merits.**

White v. Western Title Ins. Co. (1985) 40 Cal.3d 870, 885-886 matters to CSAA because California law does not wall off your claim handling from your litigation conduct. Under White, CSAA's duty of good faith and fair dealing continues after suit is filed. Post-filing litigation conduct may be considered as evidence of CSAA's earlier claim-handling intent and objectives. That means the Court may treat what CSAA and its agents did after litigation began as proof of whether CSAA was investigating fairly, or whether CSAA had already moved into deny-delay-defend mode.

For CSAA, that collapses the separation you want between the February 2021 certified investigation and everything that followed. The empty-file certification, the immediate adversarial posture, the failure to obtain foundational evidence including the 911 audio, and the later campaign to block merits adjudication are one continuum. Under White, that continuum can be used against CSAA as evidence of litigation objectives and claim-handling avoidance.

So when CSAA tells the Court it went adversarial immediately, and when CSAA's section 391 strategy seeks to keep the empty investigation file from being tested, White tells the Court those facts are not insulated as harmless "litigation strategy." They are evidence of CSAA's position on the empty file itself. That is why 885-886 is not academic. It puts CSAA's post-filing course of conduct directly into the same evidentiary frame as the certified investigation CSAA still has not defended on the merits.

A first-year law student can see it. I do not know whether you are dense or simply overconfident. Either way, the record reads the same.

CSAA certified an empty investigation as complete, fair, and objective. CSAA pulled a police report that flagged silent-witness information, then moved straight into an adversarial litigation posture without notifying the claimant. CSAA's own anti-SLAPP papers tell the Court it went adversarial immediately, without collecting the insured's material admission that would have signaled liability. The empty file and the missing 911 audio are not a paperwork quibble. They are the proof of the avoidance.

Tyler: I told you the merits when we first spoke. You have an empty investigation file that CSAA certified as complete, fair, and objective. We all know that is not true. Why can you still not follow that?

If you want to litigate, litigate the merits. Explain why CSAA's handling was lawful. Tell me how CSAA had any right to pull a police report that expressly flagged silent-witness information, then immediately shift into an undisclosed-to-claimant adversarial litigation posture, without even notifying the claimant of that turn. Saying you immediately went into litigation posture is an admission that you did not perform the duty in good faith. That is how it works. Until you answer that on the merits, every status motion that blocks adjudication of that empty file is the same continuum: deny, delay, defend.

Your attempt to block me from ever filing in any court on my other primary rights is a joke. I am seriously concerned this may have been an almost fatal move for you. Either you acted out of desperation, or you genuinely believe you can persuade the courts to strip me of rights protected under the Constitutions of the United States and of California.

You assembled a self-serving narrative. Unfortunately for you, you signaled this agenda months ago. You told me you would seek a vexatious-litigant designation because I intended to follow the standard route: progressively presenting my causes of action as they ripen through your admissions, each time you respond to the complaint, and then on appeal. Each of those responses forces you into a position that exposes how you immediately assumed a bad-faith posture without fulfilling your duties under California law.

Either you forgot that you threatened me with this exact move when I told you I was going to pursue my rights and my access to the courts, or you are pretending that threat never happened while recycling it in this new pleading. I told you then that I would present everything you said. I have no problem standing behind what I have presented. The two of you, and your client CSAA, are too afraid to face me on the merits. That is why you keep avoiding them.

Every day I wake up with the pain in my spine and my back, where I was hit, where the truck shattered my posterior ribs. Do not pretend you missed this. I was run down from behind on the sidewalk by a driver who placed the 911 call, admitted it on that call, then denied it the moment police arrived because he realized how much trouble he was in, and later admitted in court that it was his voice on the recording. When counsel at PSA Law said they did not have that recording, did not have his voice on that recording, that means your investigation failed, and that CSAA certified something that was not true. You certified that you completed an investigation. You did not complete the investigation required by law.

We are going to get into what is in that file. We are going to identify why your documents do not retain the admission of CSAA's insured that he nearly killed me. And maybe you will keep pretending you have not listened to the 911 audio. But my voice is on that recording too. The defendant placed the call. I made sure the emergency operators could hear me, so I could tell my children who killed me.

I do not think you understand this. While I was dying on the sidewalk, I forced my voice onto that 911 line so my children would know who killed me. The people at Zuckerberg San Francisco General saved my life. If you think I am going to stop pursuing my primary principal rights under the Constitution, you are sadly mistaken.

I do not have to put his statement in front of any jury again. He already admitted that it is his voice. So when the investigation unit asked me about the audio, the answer was already locked in by your own insured's admission and by the recording itself, including my voice on the same call he placed. What remains is why CSAA's certified "investigation" never obtained or retained that material in the first place.

Choose carefully. Persist along this avoidance continuum, and you're only amplifying the bad faith settlement practices evidence and Institutional Posture of CSAA. By following the DDD playbook, you amplifying your clients damages and risk. I suggest that you are ethical and tell them that you are now in the phase that if you continue to take these measures, you are signaling clearly that you are trying to avoid discussion of the empty file merits. This message is being transmitted to the insurance investigation committee, and division of enforcement.

Have a good day.

Franciscus Dylan Rosario
Plaintiff, In Pro Per
CGC-25-631802
soltrinox@gmail.com
650.488.7510

On Wed, Jul 22, 2026 at 5:31 PM Dylan Rosario <soltrinox@gmail.com> wrote:

One more thing so that way you don't miss this chat and Tyler. And I suggest you read these AI formatted docs, look for the following parts, lest you miss them::

Designation as a vexatious litigant that follows settlement and voluntary dismissal pressure emails and cease-filings commands is the endgame of a merits-avoidance campaign, not proof that Plaintiff lacks any reasonable probability of prevailing on unadjudicated rights. (Baral, 1 Cal.5th at 393-396; Opp. MPA Args. III, V, VI.)

This is red-flag bad-faith avoidance. Quit the deny-delay-defend playbook. You still have not addressed the merits of the empty investigation file.

If Porter Scott is confident in its position, why do you fear adjudicating that empty file on the merits? Why keep it from the Court? Your active blocking signals to judges, counsel, the press, and the insurance investigation committee that you do not want anyone looking inside the file. The core facts are an empty investigation file with no obtained 911 audio of your insured.

You have signaled deny-delay-defend avoidance, the playbook applied verbatim, at every step. The empty-file controversy will be adjudicated, whatever efforts you make to keep me from presenting your claims-handling failures and the empty investigation file in the California courts.

By seeking to block specific adjudication of my unadjudicated primary rights concerning that file, you have stepped into your own contradiction. I hope your complex-case consultant reads this carefully: the California Department of Insurance / Fair Claims investigatory process will be notified that Defendant is attempting to obstruct examination of the investigation file itself. Consider what that means before you dig further.

You already created this exposure when you filed the anti-SLAPP. The present effort to avoid the contradictions you have taken about the contents of the investigation file is of your own making. If you continue, you continue at your client's risk. The Court need not invent the conflict for you; the record you built will do that work.

If you push this status-sanction campaign further in order to prevent adjudication of the empty-file merits, you are asking the Court to chill petitioning and due-process access for a litigant seeking to test a certified investigation that produced no foundational obtainment, including no obtained 911 audio of your insured. That is not a merits defense. It is avoidance, and it is now of record.

Regards,

Rosario

On Wed, Jul 22, 2026 at 4:59 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Sorry, we forgot to add the calendar for department 302. Since this is regarding case 802 it's gonna be in the even court, which means that judge Quinn will be hearing on it.

So I've added department 302 in the delivery list here.

Have a good day.

Frank Dylan Rosario
Plaintiff

On Wed, Jul 22, 2026 at 4:56 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Subject: CGC-25-631802 — Operative Opposition Cohort Served (Aug. 26, 2026) — Continuum Now of Record

Counsel:

Plaintiff has e-filed and served his OPERATIVE opposition cohort to Defendant CSAA Insurance Exchange's Motion to Declare Plaintiff a Vexatious Litigant and for related security / prefiling relief under Code of Civil Procedure sections 391 through 391.7, noticed for hearing August 26, 2026, at 9:00 a.m., in Department 302.

This is not a courtesy draft. It is the superseding set. Any prior draft of Plaintiff's Opposition

Memorandum or Exhibit Index is replaced by the papers lodged today. The POS-050 dated July 22, 2026 is the operative proof for this cohort. Tax / costs papers under CRC 3.1700(b) remain a separate cohort.

What is now before the Court

1. Notice of Opposition
2. Operative Opposition MPA
3. Plaintiff's Declaration ISO Opposition
4. Objections and Response to Defense RFJN
5. Objections to Defendant's Proposed Order
6. Evidentiary Objections to the O'Connell Declaration
7. Operative Plaintiff Exhibit Index (Exhibits A–E Combined)
8. NEW: Supplemental MPA (Access / Defense Email Conduct)
9. NEW: Supplemental Exhibit Index (Defense Emails F–N)
10. NEW: Plaintiff Exhibits F–N Combined
11. [Proposed] Order Denying the Motion
12. Declaration of Compliance (CRC 2.256 / 3.1110)
13. POS-050

Why the supplemental papers are in this transaction

Exhibits F through N place your own April 10 through May 5, 2026 correspondence of record: voluntary-dismissal / fee pressure (Ex. F); “zero merit” and artificial-intelligence pejoratives in place of empty-file engagement (Exs. G–J); the April 30 express section 391 threat (Ex. K); channeling / “cease filings” demands (Exs. L–M); and the chill of oral presentation (Ex. N), culminating in the July 21 section 391 filing.

Those papers are offered as continuum / access evidence under sections 391(b)(3) and 391.3 and under *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 885-886. They are not a freestanding tort against counsel. They are proof of litigation objectives: keep the empty investigation file from being tested in open court.

Deficiencies you have not cured

CSAA certified a February 2021 investigation as concluded and denied the claim without foundational objective obtainment. The principal Opposition and Exhibits A–E put that institutional omission, and the section 391 strategy built on top of it, squarely before Department 302. Your motion does not fill the empty file. It seeks to punish the petition that would expose it.

Calling Plaintiff's papers “harassing,” “clogging,” or “AI-drafted” does not satisfy *Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971-972. Docket volume manufactured by Defendant's own multi-track dispositive stack is not flagrant abuse by Plaintiff. Reframing access as abuse is the continuum, not the cure.

Where this now goes

The deny-delay-defend posture, from certification without foundational obtainment through the email

sequence and the section 391 campaign, is now before the Superior Court on the August 26 calendar. The same continuum of claims-handling and litigation conduct will also be presented to the insurance investigation / regulatory review bodies charged with examining whether CSAA's February 2021 investigation and subsequent defense of that investigation meet California's standards of thoroughness and good faith. Court and oversight will examine the same record you created.

If Defendant intends to meet the empty-file controversy on the merits rather than by status sanction, it may do so in opposition to the facts and law now lodged. Until then, Plaintiff will proceed on the operative papers served today.

Conduct yourselves accordingly,

Franciscus Dylan Rosario
Plaintiff, In Pro Per
7624 Melody
Rohnert Park, CA 94928
650.488.7510
soltrinox@gmail.com
Case No. CGC-25-631802

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Subject: Transaction Receipt

This email is to confirm receipt of your documents. The transaction option you selected was "File And Serve". The details for this transaction are listed below.

Court: CA Superior Court County of San Francisco-Civil
Case Name: FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE EXCHANGE ET AL
Case Number: CGC-25-631802
Transaction ID: 80105728
Authorized Date/Time: Jul 22 2026 4:51PM PDT
Authorizer: Franciscus Dylan Rosario
Authorizer's Organization: (SRI)-Rosario, Franciscus
Sending Parties:
ROSARIO,, FRANCISCUS DYLAN
Served Parties:
CSAA Insurance Exchange
Document Title(s):
Plaintiffs Notice of Opposition to Vexatious Litigant Motion (6 pages)
Plaintiffs MPA in Opposition to Vexatious Litigant Motion (14 pages)
Declaration of Franciscus Dylan Rosario ISO Opposition (7 pages)
Plaintiffs Objections and Response to Defense RFJN (7 pages)
Plaintiffs Objections to Defendants Proposed Order (7 pages)
Plaintiffs Evidentiary Objections to OConnell Declaration (9 pages)
Plaintiffs Exhibit Index ISO Opposition (7 pages)

Supplemental MPA (Access - Defense Email Conduct) (11 pages)
Plaintiff Exhibits A-E Combined (bookmarks) (29 pages)
Supplemental Exhibit Index (Defense Emails F-N) (6 pages)
Plaintiff Exhibits F-N Combined (bookmarks) (19 pages)
Declaration of Compliance (CRC 2.256 - 3.1110) (4 pages)
Proof Service (4 pages)
Clerk Letter: Operative Opposition Updates (Aug 26) (4 pages)

Link to transaction details page where all documents can be viewed: http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToF7jq5DqcgBVPeE3uSQzG-2BNKBwjWtDqSOw-2Fu7h6M-2FF4UvV-2FryIDgQHBEOS7TGCyuy0-3DF6pF_yXrJZH7HFH9b7ISjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRIjGquU6U-2FybyOxtIUzZFU5pABPjk7GrSkxSvaaNzKZeK9BsAzpxrO4nElLmXg5vAFBzOd-2F3fGfc4ijgBFFFQPDvlpJl-2FE0k-2BN18N1kjkOWz0hy3O6xqAJf7-2F28CW7iAzRnkP9wFBGH1a5fSXmM0AsXP90AdR5Z-2BIPlvmcBVlyg-3D-3D

Documents with direct links (The direct links will be available for your convenience for the next 7 days):

Plaintiffs Notice of Opposition to Vexatious Litigant Motion (Clerk review status: Pending):
http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwgDeZ7B3CTFhWlo291w7VVB1d1WzIMrIsU8poivGLjdgDV9NzrvdJpk-2FHoWO88pVg-3D-3DONFT_yXrJZH7HFH9b7ISjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRIjGquU6U-2FybyOxtIUzZFOMJJxHVTd4ui4v-2BGW-2FHBtHE85uRFv9kYzi8xU79HV20xF4i7mOAE1TMylir9xIjGz-2BJ2swKcsW2CxQHAXTloBtF9Of1g6KGEndldZuM1BtBmZr3Qh-2Fi56y7cBEQxJW9tnYfW5LlvxCuEEURs1heKng-3D-3D

Plaintiffs MPA in Opposition to Vexatious Litigant Motion (Clerk review status: Pending):
http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwruJSqKkbLiWinWR3w519Wyjqn0XiXHFC-2FG0Y-2BvO-2BMh8aAYepYyQMiQIXw3Riibj-2Bw-3D-3Dxexq_yXrJZH7HFH9b7ISjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRIjGquU6U-2FybyOxtIUzZFA8YAYCs2O3DQfmBNo5fuHzUDcmMyywfeyxR85-2B6-2Bd2oa5TlxOfubZgXvuXu5wGPcb-2FNtS8e9Irb9uKmRkV0-2FPCV1yEnj7S1SSySHxsXbz3Hn-2B8TSLy325Luu62IZcM-2BkUCaGwHY0icfoVue7zdmQrQ-3D-3D

Declaration of Franciscus Dylan Rosario ISO Opposition (Clerk review status: Pending):
http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwsnLypvS5JIXDws77Og3cBkhgg3uUgao6cGKvM2ZmBGadN2ZQmFHKca5jvjnnq3fJA-3D-3D-UXb_yXrJZH7HFH9b7ISjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRIjGquU6U-2FybyOxtIUzZF2XMiGzsGq4GuXtc9Znylryunw-2FMtADzsLKwJ2AomcyC-2FapXRQuBlJqWDGEOqVp6Wwse9saQOfxCanhU0Yu5kybl-2BYCK8ExN9C3e-2BtcVi6IWK0tEIXfz7BGwD5PwCmI26KNHnrmYJctZREBUwdx-2BdUw-3D-3D

Plaintiffs Objections and Response to Defense RFJN (Clerk review status: Pending):

http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwgBzY1yvSW1LXQlcUeftnG527I12bCMfjHm7N1dgx66LbXUbsCaHVaHxkzYcRU2WHw-3D-3DyQ5f_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRLjGquU6U-2FybyOxtlUzZFLew6hBbtWMglLBE-2FlgrbeX3FYCKWudgWY05V0oqiPbXZ8eBNHZY7Vk0zekUIWXmQYzsukBs9hgZe8u5qtQQur0oWS26eoA2XXMU514pr7dD6y0kFHBuZ5LQLSBH9WDZAWOUFG4VrzOLz4oyEu6eAw-3D-3D

Plaintiffs Objections to Defendants Proposed Order (Clerk review status: Pending):

http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwrGEy33zo0dYXBFNjqMf6vbNzeHWdXeI07lyWhsPxcG-2FFCt3XtpLw-2FwkV-2FI70RZh0Q-3D-3DJBE9_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRLjGquU6U-2FybyOxtlUzZF1F0FgBGzCuHNPdHEGZycB-2FL3oSl3uUypQyY9TQt3vDN9sUoowlmbR0N9hIDmAXJfuLaaWCNyyz70xHx1ZqjjTqOnb4B0u59u2GU-2BrlUeNd36IEf9YLnYSSsz0Yv2UitnB4vUqjrVNd2eJsZgX9DbA-3D-3D

Plaintiffs Evidentiary Objections to OConnell Declaration (Clerk review status: Pending):

http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwt1-2Ft0UFWWhMHPZCMQUve7sxhhHH9kQW-2Bf-2FWtL5SNKA3DJKAUVvZfjlsot3JylS-2BPA-3D-3DM3-8_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRLjGquU6U-2FybyOxtlUzZFKWBOAPjYAn87ozkUqX8pOMpb6TvbJKNm2IZvHzdlihwGQUZj4ujdJW-2FU5pO-2BT2A94SPUhdmpAMP9e2MKv6Bjg9pf1-2BWLhbiEGUOvwjkawWm-2B3C0G3tqkB1leswTYkrr1MhIWmZkIGDgxLOoNkx3Ztg-3D-3D

Plaintiffs Exhibit Index ISO Opposition (Clerk review status: Pending):

http://url9504.fileandserveexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToGR-2BmNFS9kN-2BGRoMVZx8EtXj98kC44BkHOMm-2BJdBAPwwlxzdX860D1IFVjGamfTYF2YBdwBYHJ8v0KEKHXA54W8XUAOHvzyif0CGGDvznjLQ-3D-3Do5DM_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdwwPP99uApXWo7FMRLjGquU6U-2FybyOxtlUzZF8PrxrOrZ5zsU9qlAnPBPPRSpbhaspEWPAoTUNh4iQcDsRL-2FD9Cv5Hs1PiWoSamSB0AeNwSp26H4AiqUN1vtjH2jZ-2FmL4ivyO-2Fuad1FOptQSe0jiSFgZRZbX6gCnXH9qM-2B6SAGb12ViWcjdS9UCtfpQ-3D-3D

Supplemental MPA (Access - Defense Email Conduct) (Clerk review status: Pending):

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Plaintiff Exhibits A-E Combined (bookmarks) (Clerk review status: Pending):

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Supplemental Exhibit Index (Defense Emails F-N) (Clerk review status: Pending):

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Plaintiff Exhibits F-N Combined (bookmarks) (Clerk review status: Pending):

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Declaration of Compliance (CRC 2.256 - 3.1110) (Clerk review status: Pending):

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Proof Service (Clerk review status: Pending):

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Clerk Letter: Operative Opposition Updates (Aug 26) (Clerk review status: Pending):

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Additional Recipients:

TYLER OCONNELL

Monique Schubert

CHAD TAPP

DEPT 302

Rebekah Morrissey

investigations insurance

DEPT 302

Contest Dept 301

Calendar Dept 301

Thank you for using File & ServeXpress.

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On Wed, Jul 22, 2026 at 1:53 PM Dylan Rosario <soltrinox@gmail.com> wrote:

RE: Meet and Confer Regarding Defendants' Vexatious Litigant Motion

Chadd, Tyler, and the Porter Scott team,

This correspondence constitutes a formal **meet and confer** regarding your pending vexatious litigant motion.

After reviewing your motion and the governing provisions of California Code of Civil Procedure sections 391 through 391.8, it is apparent that your motion lacks both a factual and legal basis. Accordingly, I request that you voluntarily withdraw the motion before the Court is required to expend judicial resources addressing arguments that are unsupported by the governing statute.

Your motion improperly attempts to aggregate separate lawsuits involving different defendants, distinct legal duties, separate operative facts, and independent causes of action as though they constitute the same litigation. That is not how California's vexatious litigant statutes operate. Whether a litigant qualifies under CCP section 391 depends upon the statutory criteria being satisfied, not upon a generalized complaint that a party has filed multiple lawsuits or multiple pleadings. Filing amended complaints, opposing motions, and asserting claims that arise when they become legally ripe are ordinary litigation activities and are not, standing alone, evidence of vexatious conduct.

Moreover, your motion ignores the reality that many of the filings you now complain about were necessitated by your own litigation strategy. You elected to file numerous motions attacking amended pleadings. My responsive filings were made in direct response to those motions and were required to defend my legal rights. Characterizing responsive litigation activity as evidence of vexatiousness is unsupported by the statute and contrary to the purpose of the vexatious litigant laws.

Likewise, my claims against CSAA arise from CSAA's own independent statutory and common-law duties. They do not arise merely because CSAA insured another party. Those claims concern CSAA's own conduct, its investigation, its claims handling, and its compliance with California law. Attempting to portray those claims as nothing more than repetitive litigation against a different defendant misstates both the facts and the applicable law.

Accordingly, this letter serves as my request that you immediately withdraw your vexatious litigant motion. Should you decline to do so, I will oppose the motion in full and will seek every remedy available under California law, including recovery of any fees, costs, or other sanctions that the Court determines are appropriate for having to respond to a motion that lacks legal and factual support. I also reserve the right to rely upon this correspondence in demonstrating that you were placed on notice of these deficiencies before the matter was heard.

I strongly encourage you to reconsider your position. Continuing to pursue a motion that is unsupported by the governing statute serves neither your client nor the Court and unnecessarily increases the expense of this litigation. If you believe there is authority supporting your interpretation of CCP sections 391 through 391.8, please identify it. Otherwise, I request that you voluntarily withdraw the motion no later than your next filing.

Should you elect not to do so, you will proceed with full knowledge that the legal and factual deficiencies identified above have been brought to your attention before the hearing.

Regards,

Frank Dylan Rosario
Plaintiff

This email has been scanned for spam and viruses by Proofpoint Essentials. Click [here](#) to report this email as spam.

From: Dylan Rosario <soltrinox@gmail.com>
Sent: Tuesday, July 7, 2026 12:04 PM
To: Chad S. Tapp; Tyler O'Connell; Rebekah.Morrissey@csaa.com; Serena Blithe; investigations@insurance.ca.gov
Cc: Stephanie Hengl
Subject: Re: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

Follow Up Flag: Follow up
Flag Status: Flagged

External email

CSAA Counsel,

Here we go, Chad and Tyler. I am providing a narrative version because I know you guys sometimes have a hard time reading the authorities.

Like I said, when you took your position on the anti-SLAPP regarding the denial letter, you admitted that you immediately moved into an adversarial litigation posture without conducting a thorough, fair, and objective investigation. That is a direct violation of the California Insurance Code and the Fair Claims Settlement Practices Regulations. Plain and simple.

It was your choice to claim the litigation privilege to try and make your client immune. But by explicitly stating on the record that you immediately moved into that litigation posture, you caused your defense to collapse across all the other actions you took. CSAA immediately adopted an unlawful deny-delay-defend institutional practice before completing its regulatory duties. No amount of rewinding your statements on the record can defeat that.

You have now locked yourselves into an admission of violating the Insurance Code and unfair competition laws. When you chose to use an anti-SLAPP claiming the letter was pre-litigation, it immediately triggered the inverse consequence on the regulatory side. Maybe you need to look this up: you cannot send a denial letter to an unrepresented claimant, prior to ever communicating with them, in anticipation of litigation. That is a textbook unfair claims settlement practice.

Maybe because you are attorneys, you think nobody else understands what an unlawful claims practice looks like? Hubris, arrogance, I don't care. The two of you are ignoring the reality of the implications of saying you sent a letter in anticipation of litigation. That is an immediate admission of violating the Insurance Code and the Fair Claims Settlement Practices Regulations. There is just no way around it.

Here is a narrative for you, converted from my other documents, but it doesn't change the fact that you chose to bypass an investigatory duty under the Fair Claims Settlement Practices Regulations. This was the one letter you could never admit was a litigation document, because by doing so, you immediately admitted to violating fair claims laws. But that is exactly what happened. I told you guys this before, and you completely ignored me, assuming that just because I am a pro per, I don't understand how to read

the law. At least I got you guys to admit to the violations on the 801 and 802 cases. Now all I need to do is show the court the other primary rights that were never adjudicated, namely the violations of the fair claims settlement laws.

And Tyler, you keep saying that I'm trying to build a bad faith case. Well, yeah, because CSAA violated the law and acted unlawfully. But I didn't even have to build the case because you guys already admitted to it. So, without any further rhetoric, let's see what you guys think about this newly refined message that will go in front of the appeals court on Case 801 and Case 802.

You'll be excited to hear that because we never litigated the insurance violations, I have every right under California law to pursue those causes of action now. Through discovery and the immunity privilege position that you, Chad and Tyler filed with the court, and thanks to those filings those causes of action have ripened, and I now have your clear, on-the-record statements that you violated the laws. Make sure your friends at CSAA who are paying your bills know exactly what you wrote and what the implications are for them now.

I. The Strategic Choice and Its Self-Inflicted Nature

When Porter Scott filed the April 6, 2026 Meet-and-Confer letters and the April 9, 2026 Anti-SLAPP special motions to strike in the two companion CSAA matters, the defense made a decision that would prove structurally catastrophic to its own position. Instead of characterizing the February 25, 2021 twenty-one-day denial letter as an ordinary, neutral, coverage-evaluation product of routine claim handling, defense counsel deliberately elected to shield that letter under three overlapping immunity theories: Civil Code section 47(b) litigation privilege, Code of Civil Procedure section 425.16 protected petitioning activity, and Insurance Code section 790.03 recast as a mandatory "statutory and regulatory requirement." Each theory required, as a load-bearing element, the same factual predicate. Each theory required defense to swear that CSAA was, on February 25, 2021, already treating the third-party claimant not as a claimant entitled to a fair investigation, but as a litigation adversary against whom the carrier had assumed an adversarial posture in "anticipation of litigation."

That election was dangerous because a shield cannot function as a shield in an insurance case unless the very posture it presupposes is a violation of the statutory duty of good faith. Defense could not have both. Defense could not simultaneously (a) sit under the Civil Code section 47(b) umbrella by proving that litigation was already under serious consideration on day twenty-one and (b) argue that the carrier had discharged its 10 California Code of Regulations section 2695.7 duty of thorough, fair, and objective investigation on the same date. The two positions occupy mutually exclusive factual spaces. By reaching for the shield, defense conceded the very fact that eliminates the good-faith defense. That is the danger. That is the trap. And because the shield's trigger is codified in *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268, and *Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1115, defense cannot now walk the recital back without dissolving the shield it invoked. The concession is load-bearing. Once it is on paper it cannot be unwritten.

II. What "Anticipation of Litigation" Legally Means

The phrase "anticipation of litigation" is not rhetorical filler. In California appellate practice it is a specific evidentiary and procedural gateway. To invoke Civil Code section 47(b) for a pre-suit communication such as the February 2021 denial letter, the party asserting the privilege must show that litigation was "contemplated in good faith and under serious consideration" at the moment the communication issued. The identical trigger governs Code of Civil Procedure section 425.16(e)(2), which protects statements made "in connection with an issue under consideration or review by a legislative, executive, or judicial body." When defense counsel typed, in the Case 802 Anti-SLAPP MPA at pages 8 to 9, that "CSAA had a duty to investigate that claim and take a prompt denial position. This is protected conduct in anticipation of litigation," defense was not describing an internal mood. Defense was pleading the Neville and Briggs prerequisite as a fact.

The rhetorical move that follows is the one defense probably did not intend to make. Because the "anticipation of litigation" recital is a factual predicate for the privilege, plaintiff need not challenge it. Plaintiff can simply accept it. Under Evidence Code section 1220 and Code of Civil Procedure section 2033.410, a statement of fact contained in an adversary's own pleading is a judicial admission that binds the pleader. The plaintiff's reply framework is therefore inverted: rather than deny that the letter was written in anticipation of litigation, plaintiff accepts that recital in full, and then draws from it the statutory consequence that CSAA had, twenty-one days after the collision, already exited the neutral coverage-evaluation posture and entered adversarial claim positioning. That is not a metaphor. It is the definition of the posture *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809 and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713 identify as bad-faith claim handling.

III. The Missing Settlement Effort and the Section 790.03(h)(5) Predicate

Insurance Code section 790.03(h)(5) declares it an unfair claim-handling practice to fail to attempt in good faith to effectuate prompt, fair, and equitable settlement of claims in which liability has become reasonably clear. The regulatory floor beneath that statute is set by 10 California Code of Regulations section 2695.7, which requires the insurer to conduct a thorough, fair, and objective investigation before accepting or rejecting a claim, and to communicate its acceptance or rejection with an explanation of the specific policy provisions or facts supporting the decision. Together these provisions describe a claim-handling architecture built around one principle: before a carrier positions against a claimant, it must first investigate and, where liability is or may be reasonably clear, engage in good-faith settlement communication.

The defense's own written record shows that the February 2021 letter did neither. It contains no offer, no invitation to negotiate, no reservation of rights that leaves open a later evaluation, no acknowledgment that additional evidence such as the 911 audio, the computer-aided dispatch logs, the body-worn camera footage, and the San Francisco Police Department supplementals

might change the picture. The letter is a "prompt denial position," as defense's own MPA describes it. And immediately upon that denial, defense typed that the letter was "in anticipation of litigation." That combination, on the face of the defense's own filings, is a self-executing section 790.03(h)(5) admission. There was no settlement attempt because the carrier had already elected the litigation posture. Defense told the court that the denial letter was itself the litigation posture.

Section 790.03(h)(6) makes the same posture actionable from a different angle. That subdivision reaches carriers that compel claimants to institute litigation to recover amounts due by offering substantially less than the amounts ultimately recovered or by refusing to engage in settlement conduct that would obviate suit. When a carrier goes on the record and says that its very first communication with a third-party claimant was written in anticipation of litigation, it has admitted that litigation was the mechanism by which the claim would be resolved. The carrier did not shift into a litigation stance in response to unreasonable claimant demands. The carrier occupied the litigation stance twenty-one days after the accident, before the file was materially developed, before public-record evidence was gathered, and before any settlement communication was attempted.

IV. The Neville and Briggs Trap: Shield Trigger Equals Factual Admission

The trap the defense fell into operates as a six-move logical sequence. Move one is the election. Defense elected to shield the February 2021 letter under section 47(b) and section 425.16(e)(2) as pre-suit petitioning activity conducted in anticipation of litigation. Move two is the shield's prerequisite. Neville and Briggs, both controlling authorities, require that litigation must have been contemplated in good faith and under serious consideration at the time of the communication. Move three is the automatic factual admission. Because the shield's prerequisite is a factual predicate, invoking the shield is invoking the fact. Defense has told the court, on the record, that CSAA had already exited the neutral coverage-evaluation posture and entered the adversarial litigation posture on the twenty-first day.

Move four is the Egan consequence. An adversarial-from-day-one posture cannot coexist with the Egan requirement of a thorough, fair, and objective investigation before decision. Egan describes an insurer that has a duty to give at least as much consideration to the interests of its insured, and by extension the third-party claimant it is regulating through the Fair Claims Settlement Practices Regulations, as it gives to its own interests. That duty is not discretionary. It is not subject to strategic recharacterization. And it cannot be discharged by a carrier that treats the claimant as an adversary before the file is developed. Move five is the section 790.03(h) cascade. The same admission that supports the section 47(b) shield converts into predicates under section 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13), as well as violations of 10 California Code of Regulations sections 2695.1(a), 2695.4(a), 2695.5, 2695.7(b), 2695.7(c), 2695.7(d), and 2695.7(g). Move six is the Anti-SLAPP gateway defeat. Because Code of Civil Procedure section 425.17(c) enumerates "insurance" on the face of the statute and categorically removes commercial insurance conduct from the reach of section 425.16 when three conditions are met, and because defense's

own text pleads each of those three conditions, the special motion is barred at the gateway before the court reaches either prong.

The genius, and the tragedy for the defense, is that once the "anticipation of litigation" recital is on paper, defense cannot back away from it. The recital is the shield. To retract it is to lose the shield. To keep it is to admit the section 790.03(h) predicate. That is the closed loop the defense has drawn around itself.

V. The Wilson Genuine-Dispute Forfeiture

Wilson v. 21st Century Ins. Co., 42 Cal.4th at 723 to 724, is the controlling authority on the genuine-dispute defense. Wilson holds that an insurer may defend against a bad-faith claim by showing that its position at the time of denial was based on a genuine dispute over coverage or liability, measured on the file that then existed. Two features of the Wilson doctrine are crucial to understand why the defense's admissions self-destruct.

First, Wilson is a temporal doctrine. Reasonableness is measured at the moment of denial, on the record that existed at that moment. It is not measured against a jury verdict rendered years later. Yet the Case 801 Anti-SLAPP MPA at page 9 typed the exact hindsight sentence Wilson forbids: "Notably, the jury agreed with CSAA and also found that the Insured was not negligent, which, incidentally, reinforces the validity of CSAA's position of liability in its February 2021 denial letter." That sentence, in Porter Scott's own text, is a straight admission that the defense views the 2021 denial as validated by the 2024 to 2025 tribunal verdict rather than as an independent good-faith investigation product. Wilson forecloses that maneuver. Once counsel types the hindsight argument, the Wilson defense is forfeited, and any future genuine-dispute assertion is estopped on the face of the brief.

Second, Wilson requires that the file at the time of denial actually reflect a good-faith investigation. If the file shows that the carrier positioned before investigating, then no genuine dispute defense can arise, because the carrier did not evaluate the dispute in the first place. Defense's admission that the letter was written in anticipation of litigation is the same admission, at a different angle, that the file at the time of denial was not the product of a section 2695.7(d) investigation. It was the product of adversarial preparation. A file assembled to prepare for litigation is not a file assembled to fairly resolve a claim. The Wilson defense cannot attach to it.

VI. The Section 425.17(c) Gateway Bar

Code of Civil Procedure section 425.17(c) is not a discretionary carve-out. It is a categorical exclusion. When three enumerated conditions are met, the special motion to strike under section 425.16 does not apply at all. The three conditions are that the statement or conduct occurred in the course of the person's delivery of goods or services, that the statement concerned the speaker's business operations or those of a business competitor, and that the intended audience

was an actual or potential customer or a person likely to influence customer decisions. Insurance is enumerated on the face of the statute.

Defense's own text supplies every element of section 425.17(c). Defense pleaded that the denial letter was issued as a "statutory and regulatory requirement" under Insurance Code section 790.03 and 10 California Code of Regulations section 2695.7. That is the delivery of insurance services. Defense pleaded that the denial letter was a compliance product regulated by section 790.03 and the Fair Claims Settlement Practices Regulations. That is the speaker's own business operations. And defense pleaded that the intended audience was the third-party liability claimant, who under 10 California Code of Regulations section 2695.2(c) is defined as a "claimant" within the regulatory audience of a carrier for purposes of the regulatory scheme. That is a customer or a person likely to influence customer decisions within the meaning of section 425.17(c).

The consequence is that the Anti-SLAPP motion is defeated at the gateway. The court does not reach the prong-one "protected activity" analysis or the prong-two "probability of prevailing" analysis. The motion falls before those analyses begin. And it falls not on plaintiff's argument but on defense's own text. Defense's brief, in the very language it chose to protect the letter, supplies each element of the categorical statutory exclusion.

VII. The Twenty-One-Day Timeline as Structural Bad Faith

The regulatory framework contemplates a specific temporal cadence for claim handling. 10 California Code of Regulations section 2695.5(b) requires the insurer to respond to communications regarding a claim within fifteen calendar days. Section 2695.7(b) requires the insurer to accept or deny the claim within forty calendar days after receiving proof of the claim. Those provisions establish a floor, not a ceiling. They do not authorize the carrier to elect adversarial positioning inside the first twenty-one days. They require the carrier to use that time to conduct a thorough, fair, and objective investigation before deciding whether to accept or reject.

The Silent-Witness materials in this matter, the 911 audio, the computer-aided dispatch, the body-worn camera footage, and the San Francisco Police Department supplementals, were public-record evidence. A good-faith investigator on day twenty-one would have been gathering that evidence, not writing a denial position paper. A good-faith investigator would have been engaging the claimant, not preparing for the claimant's expected suit. A good-faith investigator, in other words, would have been discharging the section 2695.7(d) duty, not composing a Neville-and-Briggs shield.

By pleading that the February 2021 letter was written in anticipation of litigation, defense has told the court that CSAA did the opposite. CSAA did not investigate and then position. CSAA positioned first, in an adversarial posture, and then closed the file. That inversion of the regulatory cadence is not merely a fact that plaintiff might allege. It is a fact defense has typed into two Anti-SLAPP motions.

VIII. The Deny-Delay-Defend Architecture in Defense's Own Paraphrase

The Case 802 Anti-SLAPP MPA at page 6 reproduces the FAC's causal allegation and stitches it to defense's own characterization of CSAA's conduct: "insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense." The paraphrase links, in a single causal chain, the twenty-one-day denial letter, the third-party litigation that followed, and the 9-3 defense verdict achieved by the same institution that authored the letter. That is not a plaintiff's construction of the case. It is the defense's own narration.

Section 790.03(h)(6) targets exactly the architecture the paraphrase describes. A carrier that denies the claim, forces the claimant into court, then funds and controls the defense at trial, and finally offers the trial verdict as retrospective vindication of the initial denial, has performed the deny-delay-defend sequence in the pure form the Legislature had in mind when it drafted section 790.03(h)(6). The template repetition of the intimidation script across both companion Meet-and-Confer letters and both Anti-SLAPP MPAs supplies the "general business practice" element of the section 790.03(h) lead-in. Insurance Code section 790.03(h) opens with a lead-in that captures conduct performed with such frequency as to indicate a general business practice. Two case files, one self-represented claimant, identical language: the frequency is documented in the defense's own filings.

IX. Why This Constitutes a Violation of Good Faith

Good faith in California insurance law is not an atmosphere. It is a specific implied covenant, given content by Egan and by the Fair Claims Settlement Practices Regulations. It requires the insurer to give as much consideration to the interests of the claimant, in the third-party context regulated by section 790.03 and the accompanying regulations, as it gives to its own. It requires the insurer to conduct an investigation before positioning. It requires the insurer to communicate acceptance or rejection with an explanation grounded in policy provisions and facts. It requires the insurer to attempt good-faith settlement where liability is reasonably clear. It requires the insurer, above all, to preserve the neutral coverage-evaluation posture until the file supports a decision.

The defense's Anti-SLAPP filings admit that CSAA did none of those things. The filings admit that the carrier moved directly from receipt of the claim to an adversarial position within twenty-one days. They admit that the carrier's first communication with the claimant was written in anticipation of litigation. They admit that the carrier made no settlement effort. They admit that the carrier funded, directed, and controlled the resulting litigation as a matter of Insurance Code duty. They admit that the carrier views the trial verdict as retrospective justification of the initial denial. Each admission, standing alone, is a violation of the implied covenant of good faith and of the section 790.03(h) predicates that give the covenant content. Together they constitute a documented, memorialized deny-delay-defend architecture.

X. Conclusion: The Shield That Documented the Wound

The dangerous thing the defense did in choosing this Anti-SLAPP posture was to memorialize the very fact that eliminates the good-faith defense. By reaching for Civil Code section 47(b) and Code of Civil Procedure section 425.16, defense had to plead the Neville and Briggs prerequisite that litigation was already under serious consideration on February 25, 2021. That prerequisite is not neutral. It is the definition of a carrier that has abandoned neutral coverage evaluation for adversarial positioning at the earliest possible moment. By pleading Insurance Code section 790.03 as a "statutory and regulatory requirement," defense conceded the applicability of the regulatory floor and joined compliance as a triable question. By pleading the duty to defend and the funding, direction, and control of panel counsel, defense conceded tripartite agency and opened CSAA to vicarious and ratification liability for panel counsel's tribunal conduct. And by refusing to attempt settlement, the defense converted the ordinary Egan bad-faith investigation duty into a documented failure on the face of the record.

The defense chose immunity. The defense wrote its way into liability. Every sentence that was intended to defeat plaintiff's action now, when accepted at face value under Evidence Code section 1220 and Code of Civil Procedure section 2033.410, supplies a section 790.03(h) predicate, a section 425.17(c) gateway trigger, and a Zhang v. Superior Court (2013) 57 Cal.4th 364 UCL predicate. The immunity shield the defense reached for is not a shield. It is a signed confession, filed in duplicate across two case captions, that CSAA treated the third-party claimant as a litigation adversary before it treated the claimant as a claimant at all. That is the violation of good faith. That is what the record now shows. And that is what the defense cannot walk back, because the very act of walking back would dissolve the immunity shield it typed into being.

Conduct yourself accordingly

F.D. Rosario

cc: investigations@insurance.ca.gov

On Mon, Jul 6, 2026 at 8:03 PM Dylan Rosario <soltrinox@gmail.com> wrote:
Chat and Tyler,

Our last meeting made it completely obvious that you've now admitted to the court that your client sent a letter in anticipation of litigation. Plus, by stating on the record that you didn't even retrieve the 911 records, you admitted to failing your mandated duty to investigate. That admission itself isn't even the core of my lawsuit. Either you just don't get this, or you are intentionally playing dumb with me, because this all comes down to an insurer's statutory duty of fair claims settlement.

As I cited below from your own filings, sending a denial letter at that early stage might well have been anticipatory litigation. But when you admit that, you are also formally admitting that your client violated the core requirements of fair claims handling. Bingo.

I honestly don't know how two supposedly fantastic attorneys can't understand the most basic

concepts of insurance law. Either you skipped that part of law school, or you are just in complete denial. Let's look at your own premise. You stated that you sent a letter in anticipation of litigation before you actually completed an investigation. That is a textbook unfair claims settlement practice.

Plain and simple, you went on the record, and I am going to make sure every court in California reads it directly. I will not stop, Chad, until every court sees your argument that CSAA can just bypass its investigative duties and retroactively immunize itself by mailing a letter afterward. You really need to understand that this is not going away.

Furthermore, Chad, you can't retroactively whitewash your client's failure to investigate just because you filed a piece of paper later on. You guys didn't win anything on the anti-SLAPP on the merits. The only thing you accomplished was establishing a factual record that I now have in my possession. The California Department of Insurance is going to have it soon, too. They are going to review your statements and ask exactly where you got the authority to bypass the law. They will gladly remind you and your client that issuing an immediate denial in anticipation of litigation, without first performing a thorough, fair, and objective investigation, is a direct breach of your statutory and regulatory duties in the State of California.

By electing Civil Code § 47(b) and CCP § 425.16 as its shields in the April 9, 2026 Anti-SLAPP MPAs filed on both dockets,

Porter Scott pleaded on behalf of CSAA that the February 25, 2021 denial letter was issued in **"anticipation of litigation" as a "prompt denial position" and as a "statutory and regulatory requirement,"** which admissions independently ::

- (i) violate 10 C.C.R. § 2695.7(d) as a matter of law,**
- (ii) trigger Ins. Code § 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13),**
- (iii) forfeit the Wilson genuine-dispute defense by reliance on hindsight, and**
- (iv) supply the Bus. & Prof. Code § 17200 predicate under Zhang,**

all of which together constitute a breach of the implied covenant of good faith and fair dealing enforceable against CSAA regardless of the defense's asserted privilege. And gratefully now I'm bringing in the state board of insurance to ensure that all of the records at CSAA are properly accounted for, including the imaginary file that they claim they have for me. Because you can't manufacture records in the past, you see it takes two parties to certify it, and even if you guys manufacture one just like your imaginary concluded investigation documents, the other side is not gonna have a record of your subpoena or request, we would see some kind of transaction number or even some kind of debit to an account to pay for the records and I'm gonna go on on a line here and we're gonna probably find that you don't have that. And not having that, when you say that you were anticipating litigation, well, we know what laws that violet don't we.

Quotation 1. Case 802 Anti-SLAPP MPA, p. 8 (Section D.1: "CSAA's 'Liability-Claim Denial Letter' is Protected Conduct")

Porter Scott typed, verbatim:

"Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty to promptly investigate Plaintiff's then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal. Code Regs. § 2695.7 This is precisely what CSAA did: comply with its statutory duty and issue

a denial letter with an understanding that 'litigation [was] imminent' unless Plaintiff's claim was accepted. (Aronson, supra, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP statute."
(Case 802 MPA, p. 8; extraction lines 1216-1248.)

Quotation 2. Case 802 Anti-SLAPP MPA, p. 9 (same section, second half)

"CSAA's issuing of a liability denial letter is a statutory and regulatory requirement in the context of a submitted claim and pending litigation. . . . [T]he issuance of that denial letter, be it false, negligently issued, fraudulent, or otherwise, is protected conduct and subject to the Anti-SLAPP statute's protections. This is especially so as CSAA knew that this denial was likely 'to initiate official action' on Plaintiff's part in filing his lawsuit. (Kashian, supra, 98 Cal.App.4th at 913.)"
(Case 802 MPA, pp. 8-9; extraction lines 1298-1339.)

Quotation 3. Case 802 Anti-SLAPP MPA, p. 7 (framing paragraph for the entire motion)

"Plaintiff's allegations are solely based on i) CSAA's pre-litigation investigation and claim denial of Plaintiff's (a third party's) claim; and ii) CSAA's position as maintained by its insurance defense counsel, in litigation both pre-trial and during trial."
(Case 802 MPA, p. 7; extraction lines 1085-1104.)

Quotation 4. Case 801 Anti-SLAPP MPA, p. 10 ("duty to defend" recital)

"Not only is this not actionable, but these acts are wholly within the litigation privilege and required under the Insurance Code and the insurance policy, as a part of CSAA's duty to defend its Insured."
(Case 801 MPA, p. 10; extraction lines 1380-1388.)

Quotation 5. Case 801 Anti-SLAPP MPA, p. 9 ("hindsight vindication" argument)

"Notably, the jury agreed with CSAA and also found that the Insured was not negligent, which, incidentally, reinforces the validity of CSAA's position of liability in its February 2021 denial letter."
(Case 801 MPA, p. 9; extraction lines 1361-1365.)

Quotation 6. Case 801 Anti-SLAPP MPA, p. 9 (internal-investigations recital)

"Courts have long found 'internal investigations' conducted in anticipation of litigation to be protected activity under the Anti-SLAPP statute."
(Case 801 MPA, p. 9; extraction lines 1286-1298.)

Under California insurance law, the covenant of good faith is not a preference; it is an implied statutory and common-law term of every policy. (Comunale v. Traders & General Ins. Co. (1958) 50 Cal.2d 654, 658-659; Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818-819.) **That covenant requires the carrier to conduct a "thorough, fair, and objective investigation" before taking any adverse claim position. (Egan, 24 Cal.3d at 819; 10 C.C.R. § 2695.7(d).)** A denial issued twenty-one days after the collision, before any communication with the claimant, before the 911 audio, computer-aided dispatch, body-worn camera, and police supplementals are gathered, is structurally the opposite of that duty: it is a position taken without a file.

Under the Fair Claims Settlement Practices Regulations, the carrier must first acknowledge (10 C.C.R. § 2695.5(b)), disclose (§ 2695.4(a)), and investigate (§ 2695.7(d)) before it may deny. **Skipping the first three and going straight to denial is a per se breach of the regulatory floor and independently triggers Ins. Code § 790.03(h)(3), (h)(5), and (h)(13).**

Under common law, **the same act is bad faith because the covenant obliges the insurer to give the claimant's interests "at least as much consideration" as its own** (Comunale, 50 Cal.2d at 659) and forbids "unreasonable" denial of benefits (Neal v. Farmers Ins. Exchange (1978) 21 Cal.3d 910, 921-922; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 723).

And under agency and contract law, **a party that pre-commits to an adversarial posture before dialogue destroys the mutual-exchange premise on which the covenant rests.** That is the definition of bad faith in every legal register that governs the transaction.

The statute of limitations on my fraud and Insurance Code causes of action runs from the date I discovered the concealed conduct, not from the date of the collision. Under the delayed-discovery rule (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807 to 808; Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1109 to 1111), the clock does not start until the plaintiff has, or reasonably should have, discovered the wrongful conduct and its factual basis. That date is the date PSA Law informed the court, on the record, that CSAA and its retained counsel had never retrieved the 911 audio, the CAD entries, the body-worn camera footage, or the SFPD supplementals before issuing the February 25, 2021 twenty-one day denial letter.

That on-record statement is itself the admission I need. It establishes, out of your own client's mouth, that CSAA closed the file and issued a denial without conducting the "thorough, fair, and objective investigation" required by 10 C.C.R. § 2695.7(d). It is also chargeable to CSAA under Evidence Code § 1222 and the agency principles CSAA itself pleaded when it typed, in the 801 Anti-SLAPP MPA at page 10, that panel counsel's work was "required under the Insurance Code and the insurance policy, as a part of CSAA's duty to defend its Insured."

You cannot have this both ways. Either the investigation was complete and the twenty-one day denial letter was lawful, or the investigation was never done and the denial was a "prompt denial position taken in anticipation of litigation," as the 802 Anti-SLAPP MPA at page 8 admits. CSAA has now committed to the second position on the docket. That admission lands squarely on Insurance Code § 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13), the Fair Claims Settlement Practices Regulations at 10 C.C.R. § 2695.4(a), § 2695.5(b), and § 2695.7(d), the Egan investigation duty (24 Cal.3d 809, 819), the Wilson time-of-denial rule (42 Cal.4th 713, 723 to 724), and the common-law covenant of good faith and fair dealing implied by Civil Code §§ 1655 and 1656.

These matters were never adjudicated. This is not the same lawsuit.

On the "claim splitting" objection. California follows the primary-rights doctrine, not the transactional test. (Crowley v. Katleman (1994) 8 Cal.4th 666, 681 to 682; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Bay Cities Paving & Grading, Inc. v. Lawyers' Mutual Ins. Co. (1993) 5 Cal.4th 854, 860.)

A cause of action is defined by the violation of a single primary right, and different primary rights produce different causes of action even where the underlying facts overlap. A single wrongdoer can and often does invade several primary rights in the course of the same course of conduct. Each invasion is a separate action.

A plaintiff harmed in multiple ways is therefore entitled to pursue those wrongs in the order and

sequence that best vindicates each right. That is neither claim splitting nor piecemeal abuse. It is the doctrine California adopted precisely to permit selective adjudication. A plaintiff may (i) adjudicate the primary right that has crystallized first, (ii) preserve the primary rights that require discovery not yet obtained, and (iii) refuse to bundle unripe or independent causes into a single proceeding where doing so would prejudice proof or waive statute-of-limitations protections that run separately for each right.

That is the posture here. The primary right invaded in the personal-injury action was the right to be free from negligent operation of a motor vehicle. The primary rights invaded by CSAA's post-collision claim handling are different: the regulatory right protected by Insurance Code § 790.03 and 10 C.C.R. § 2695, the contractual right protected by the implied covenant of good faith and fair dealing, and the statutory right protected by Business and Professions Code § 17200 under *Zhang v. Superior Court* (2013) 57 Cal.4th 364, 384 to 385. Those primary rights were not before the trial court in the underlying action. They could not have been adjudicated there, and they were not adjudicated there. *Res judicata* does not attach. Collateral estoppel does not attach. There is no bar.

To be clear about what your client admitted, and what it means: CSAA has told the court that the February 25, 2021 letter was a "prompt denial position" issued "in anticipation of litigation" as a "statutory and regulatory requirement." That is not a defense. That is the definition of the violation.

The letter cannot simultaneously be an act of neutral compliance with the Fair Claims Settlement Practices Regulations and an act of adversarial litigation posturing. It is one or the other. CSAA elected the second characterization on the docket, and that election is a judicial admission binding under Evidence Code § 1220 and Code of Civil Procedure § 2033.410.

Bearing false witness in a judicial proceeding is not shielded conduct. It is the very thing Civil Code § 47(b) is designed to expose through cross-examination, not conceal from scrutiny.

Regards, Rosario

Enjoy.

F.D. Rosario

On Mon, Jul 6, 2026 at 6:19 PM Dylan Rosario <soltrinox@gmail.com> wrote:
Mr. O'Connell:

I will keep this brief and limited to correcting factual and legal inaccuracies in your letter. Silence should not be read as agreement with any characterization below.

1. The new complaint is not a "third-party bad faith" action. It does not sue on Insurance Code section 790.03(h) as a private right of action, and it does not seek personal injury damages. It pleads fraud, concealment, UCL, aiding and abetting, restitution, and declaratory relief based on CSAA's non-communicative institutional failure to obtain foundational evidence (911 audio, body-worn camera, CAD) before certifying a "concluded" investigation. Section 790.03(h) appears only as the standard of care under *Moradi-Shalal* and *Zhang*. Your "nearly impossible cause of action" label describes a claim I

did not bring.

2. The prior orders did not adjudicate these claims, and no court has told me I "can't sue CSAA." The July 1, 2026 order struck a communication-framed FAC on Civil Code section 47(b) litigation privilege and denied intra-case amendment under Simmons. It did not reach 10 CCR section 2695.7(d), section 790.03(h) as standard of care, or the fraud, UCL, and declaratory primary rights pleaded now. Simmons is an intra-case amendment rule only. (*Contreras v. Dowling* (2016) 4 Cal.App.5th 774, 791; *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477 to 478.)

3. Raising *res judicata* and collateral estoppel is not an admission of frivolousness. Addressing preclusion in advance applies the primary-right doctrine. Under *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681 to 682, and *Mycogen* (2002) 28 Cal.4th 888, 904, preclusion bars only the primary right actually adjudicated. Anticipating a defense and defeating it is the opposite of conceding it.

4. CCP 391(b)(2) does not fit these facts. That subdivision requires relitigation after a matter has been "finally determined." The 801 and 802 anti-SLAPP orders are on appeal and are therefore not final. The new complaint asserts different primary rights that were never adjudicated, so it is not relitigation of a determined issue. Post-trial motions and appeals within a single action are not separate "litigations" that count toward vexatious-litigant status.

5. You conflate three distinct matters with different defendants and different primary rights. The personal injury action concerned the driver. The regulatory and fraud claims concern CSAA's claims-handling conduct at its Walnut Creek operations. These are not "the same underlying matter."

6. The costs, comparative-fault, and "100% fault" statements do not bear on this action. The new complaint does not relitigate the collision or the personal injury verdict. Its subject is CSAA's failure to obtain evidence it later admitted was "readily obtainable," including the insured's own recorded 911 statement.

7. The personal accusations are unsupported and are disputed. Your assertions of "racist and misogynistic behavior" carry no record citation and are denied. Your claim that prior counsel told you they could not put me on the stand "because of a fraud on the court" describes privileged communications you would have no proper basis to know, is hearsay, and is denied. Besides the fact that my prior council tried to sell me out for less than what you offered two days later at CSAA. Maybe you didn't know that my prior council who made these claims against me because it would illustrate their failure to pursue my case diligently I think that's how the court looks at it when an attorney violates the professional code of conduct, however, it is when you ask to file a malpractice lawsuit because trust me, I have enough against Dolan and they have a special place on the shelf for when that case gets put together, but I'm going to make sure that we end up adjudicating everything with you first at CSAA.

8. Venue. The new action is filed in Contra Costa County, where CSAA maintains its principal place of business and administered the claim. It does not add to any San Francisco docket.

I disagree that this filing is frivolous or brought in bad faith. It is grounded in *Crowley*, *Mycogen*, *Baral*, *Park*, *Bonni*, and *Kimmel*, and it pleads primary rights no court has decided. I reserve all rights, including as to any 128.5 or 391 motion, and note that a motion filed on the inaccurate premises above would itself lack merit.

Consider this my meeting confirm Chad

Respectfully,

Franciscus Dylan Rosario,
Plaintiff in Pro Per

On Mon, Jul 6, 2026 at 6:00 PM Chad S. Tapp <ctapp@porterscott.com> wrote:

Mr. Rosario,

It's against my better judgment to respond. However, I feel compelled since this is beyond anything I've witnessed in decades of practice.

Please accept this as a brief response to simply frame things for our CCP 128.5 motion for frivolous pleadings and moving to have you declared a vexatious litigant, which will be filed if you pursue yet another complaint related to the same underlying matter.

Brief Facts

You filed the original complaint seeking personal injury damages for riding the wrong direction in traffic on a scooter.

CSAA investigated and determined there was no liability adverse to its insured driver since, at least in part, you were going the wrong direction on your scooter. Simple.

A jury of your peers agreed that you caused your own injuries because of your inability to prudently ride a scooter. The Court awarded \$76K in costs to the defense.

You filed a Motion for New trial and then an Appeal on the underlying matter after the adverse verdict. These efforts all failed.

Next, you sued CSAA for basically third-party bad faith (a nearly impossible cause of action in California). During the course of the litigation, you engaged in racist and misogynistic behavior, intentionally demeaning staff counsel Ms. Navaratnasingham. Ironically, all the while pretending to be a victim of bad faith handling by CSAA. You then lost on an Anti-SLAPP and now will owe even more in fees and costs.

Meet & Confer per CCP section 128.5

Despite the above, you've had an epiphany about the new "evidence" you uncovered during the CSAA litigation and wish to sidestep the most recent ruling with a new pleading. This is the definition of frivolous. You've had many chances in court and have lost them all. To pretend you've been deprived of your ability to present your case is a joke and you've lost all credibility in the process.

You have not been a victim of anything except your own bad judgment and poor decision-making. The above is only a small example of the filings by you and you've successfully overburdened both my office and SF County Superior Court. It would take me at least 10 hours to summarize all of your filings. In fact, if they were printed, we would have multiple volumes the size of the old Yellow Pages.

Your newly threatened complaint as described above is frivolous and being done in bad faith. It is completely devoid of merit, and you know it. In fact, you basically admit it in your threats below whereby you preemptively raise *res judicata* and collateral estoppel defenses. What is it you're trying to accomplish? There are people truly deserving of a day in court and basic due process who are being denied that right because a few people like you can backlog the entire system. Frankly, the entire underlying trial was a waste of time and resources since it was so obvious that you had 100% comparative fault.

Every person you've encountered has wronged you in your own mind: CSAA, the court, the jury, your prior lawyer, defense counsel, my firm, and even our own legal secretaries have caused you this massive injustice? Please take a close look in the mirror and reevaluate your decision to file another complaint. Bear in mind that your prior counsel actually informed defense counsel that they couldn't in good conscience put you on the witness stand since you were pursuing a fraud on the court. So, you represented yourself and started your long losing streak.

Meet & Confer for Vexatious Litigant Status

Despite the above, you've had an epiphany about the "evidence" you uncovered during the CSAA litigation and wish to sidestep the most recent ruling with a new pleadings. This is the definition of frivolous. You've had many chances in Court and have lost every battle. You've also repeatedly asserted the same allegations against CSAA specifically and have been told by the court that you can't pursue your lawsuit against them.

Thankfully, CCP section 391 gives us some guidance. If declared a vexatious litigant per this statute, the court can have you post a financial bond to cover the defendant's legal fees if the case is lost. This is particularly compelling where you already owe unpaid fees and costs ordered by the court. The judge can also issue a pre-filing order, which means you must get special permission from the presiding judge before you can file any new lawsuit.

CCP section 391 (b) (2) "After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined ..."

The above provision is directly on point, and we will file a motion accordingly if you pursue CSAA any further in a separate matter arising from the same underlying, operative facts.

Please accept this as our meet and confer attempt, and also our final plea to stop the incessant, AI generated frivolous filings and constant barrage of emails. We will not be responding any further on this topic and will proceed as outlined above if you file a new complaint.



Chad S. Tapp

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, July 6, 2026 3:44 PM

To: Tyler O'Connell <toconnell@porterscott.com>; Chad S. Tapp <ctapp@porterscott.com>; Stephanie Hengl

<shengl@porterscott.com>; Serena Blithe <sblithe@porterscott.com>

Subject: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

*****External email*****

Date: July 6, 2026

From:

Franciscus Dylan Rosario, Plaintiff in Pro Per
7624 Melody Dr.
Rohnert Park, CA 94928

To:

Tyler J. O'Connell, Esq.
Porter Scott, A Professional Corporation
2180 Harvard Street
Sacramento, CA 95815
Counsel for Defendant CSAA Insurance Exchange

Re: *Franciscus Dylan Rosario v. CSAA Insurance Exchange*, Case No. CGC-25-631802

Order: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

Dear Mr. O'Connell and Porter Scott Team:

This letter puts CSAA and its counsel on notice of Plaintiff's position on the scope of the July 1, 2026 anti-SLAPP order in CGC-25-631802 and Plaintiff's retained right to pursue unadjudicated causes of action in a new action. Plaintiff provides this notice in advance of filing so that any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection can be evaluated now, against the order's four corners and controlling California authority, rather than raised reflexively later.

I. What the July 1, 2026 Order Actually Decided

Read on its face, the order is narrow. Department 301 held only that:

1. **Injury framing.** Plaintiff was "damaged because the letter led [him] to believe that evidence had been collected and preserved and CSAA had made an adequate investigation," and "the FAC pleads that plaintiff was harmed by the representation."
2. **Prong one.** The FAC "arises from protected activity" because "Plaintiff's action is based on defendant's litigation conduct" (FAC paragraph 22F), and the pre-litigation denial letter also implicates the anti-SLAPP statute (FAC paragraphs 1, 2, 4, and 22D).
3. **Prong two.** In one sentence: "Plaintiff cannot establish his claims because the litigation privilege bars them." Civil Code section 47(b) was extended to "defendant's defense conduct including the prelitigation denial letter."
4. **Amendment.** Denied within Case 802 under *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073.
5. **Everything else.** Demurrer, motion to strike, motion to compel, and related motions were taken off calendar as moot.

The court cited exactly five FAC paragraphs: 22F, 1, 2, 4, and 22D. That citation set defines the universe of FAC content the order actually engaged. No claim-by-claim gravamen analysis was performed under *Baral v. Schnitt* (2016) 1 Cal.5th 376, or *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995. The court did not adjudicate:

- 10 CCR section 2695.7(d) (reasonable investigation);
- Insurance Code section 790.03(h) (unfair claims practices);
- Civil Code section 1710(3) (fraud by concealment);
- Constructive fraud under *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713;
- Negligence per se under Evidence Code section 669;
- UCL predicates under Business and Professions Code section 17200; or
- Declaratory relief under Code of Civil Procedure section 1060.

The court struck a communication-framed theory. It did not, and on the record before it could not, strike institutional-omission theories that were never pleaded and never analyzed under a *Park* gravamen lens.

II. *Res Judicata* Does Not Bar a New Action on Different Primary Rights

California uses the primary-right doctrine. Claim preclusion bars a second action only where it seeks vindication of the same primary right the first proceeding actually adjudicated. *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904. The primary right is defined by the specific legal injury, not by shared facts or a shared

defendant. *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797-798; see *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1097-1099.

The primary right adjudicated in Case 802 is the right to be free from harm caused by CSAA's communications (the denial letter and litigation conduct). That right was extinguished on privilege grounds. The following are separate primary rights and were not adjudicated:

Primary right (new complaint)	Why it is not the 802 primary right
Freedom from certifying a "concluded" investigation without obtaining 911 audio, BWC, and CAD records (10 CCR section 2695.7(d))	Institutional omission complete before any letter describes it
Freedom from concealment of an empty file (Civil Code section 1710(3))	Actionable silence, not the words in the denial
Freedom from constructive fraud in the special insurer-claimant relationship (<i>Egan; Wilson</i>)	Breach of fiduciary and regulatory duty
Freedom from regulatory breach as negligence per se (Evid. Code section 669)	Standard-of-care violation
Freedom from unfair claims practices (Ins. Code section 790.03(h))	Failure to investigate, settle, or explain
UCL unlawful, unfair, or fraudulent business practices (Bus. & Prof. Code section 17200)	Predicated on regulatory breach
Declaratory relief (CCP section 1060)	Not speech; not petitioning

Issue preclusion is also unavailable. Under *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341, an issue must have been "actually litigated" and "necessarily decided." The July 1 order did neither with respect to any of the primary rights listed above.

III. Anti-SLAPP Reaches Allegations, Not Cases

Section 425.16 targets "allegations of protected activity," not entire cases and not causes of action whose gravamen is non-communicative institutional conduct. *Baral*, 1 Cal.5th at 393-396; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060; *Bonni*, 11 Cal.5th at 1009-1012. A claim survives if the speech or petitioning activity is "evidence of liability" rather than "the wrong itself." *Park*, 2 Cal.5th at 1060.

The July 1 order cited *Park* and then collapsed prong two into a single privilege ruling about the denial letter and litigation conduct. It did not perform the claim-by-claim gravamen inquiry *Bonni* requires. That procedural choice, not any merits determination, is what leaves the non-communicative field open.

Section 47(b) likewise reaches communications, not the underlying non-communicative conduct they may later describe. *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209-213; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1058-1062; *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 887-888; *Trilogy Plumbing, Inc. v. Navigators Specialty Ins. Co.* (2020) 50 Cal.App.5th 920, 933. Mishandling of the claims process, including failure to investigate before certifying an investigation as "concluded," is not protected petitioning even when litigation follows.

The gravamen of the forthcoming action is a sequence of institutional acts between February 4 and February 25, 2021: CSAA did not obtain foundational objective evidence; CSAA certified its investigation as "concluded" without it; CSAA denied without attempting settlement although the insured's admission made liability reasonably clear; CSAA concealed the empty file until discovery events in the underlying trial. None of those acts is speech. The denial letter is downstream evidence, not the tort.

IV. *Simmons* Bars Amendment in Case 802, Not a New Action

Simmons is an intra-case rule. It bars amendment within the same case once an anti-SLAPP motion is granted. It does not bar a new action on different primary rights with different elements. *Contreras v. Dowling* (2016) 4 Cal.App.5th 774, 791 (bar directed at amendments designed to subvert the strike within the same case); *JKC3H8, Inc. v. Colton* (2013) 221 Cal.App.4th 468, 477-478 (non-targeted claims survive). Plaintiff accepts the *Simmons* bar as to Case 802. The bar does not extend to a separately filed action on different primary rights.

V. Use of CSAA's Anti-SLAPP Record as Evidence, Not as Preclusion

CSAA's anti-SLAPP briefing recited the falsity-when-made and failure-to-obtain facts, then asserted immunity. On a new complaint pleading different primary rights, those recitals are party admissions usable to prove the underlying institutional tort under Evidence Code sections 1220 and 1222 and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987. They are not preclusion weapons against a primary right the court never adjudicated.

VI. Design of the Forthcoming Complaint

The forthcoming complaint:

1. Accepts the court's category ruling as to the FAC paragraphs it struck and omits them;

2. Disavows communication as the gravamen of liability;
3. Passes the removal test, meaning that every count stands on institutional acts and omissions if every communication reference is deleted;
4. Uses the denial letter, MILs, and trial statements only as documentary evidence under *Park* and *Kimmel*, not as the wrong;
5. Pleads accrual and tolling grounded in concealment, with an April 16, 2025 discovery anchor, which the July 1 order also did not adjudicate.

This is not a "refile in disguise" and is not sham pleading. It is the ordinary and legally required consequence of a narrow anti-SLAPP ruling entered in a mixed-conduct universe, which is the universe *Baral*, *Park*, and *Bonni* were written to govern.

VII. Closing

The July 1, 2026 order does three things for future litigation and only three: it strikes a communication-framed First Amended Complaint; it applies sections 425.16 and 47(b) to that framed theory; and it denies intra-case amendment under *Simmons*. It does not adjudicate CSAA's failure to obtain foundational evidence, does not decide regulatory breach under 10 CCR section 2695.7(d) or Insurance Code section 790.03(h), does not decide fraud, concealment, UCL, settlement failure, or declaratory relief on non-communicative grounds, and does not hold that *res judicata* bars different primary rights.

Under *Crowley*, *Mycogen*, *Boeken*, *Lucido*, *Baral*, *Park*, *Bonni*, and *Kimmel*, Plaintiff retains the right to file a new complaint that adjudicates CSAA's institutional failure of duty on its own non-communicative terms. Plaintiff will file that complaint in due course. Plaintiff is also coordinating with the California Department of Insurance regarding the underlying regulatory issues, and is prosecuting appellate review of the orders in Cases 801 and 802 under California Rules of Court, rule 8.104. Appellate review is de novo as to both prongs, so the 801 and 802 orders remain live.

Plaintiff's position, stated plainly: no amount of privilege immunizes fraud, and discovery of the concealed conduct during a related proceeding does not confer retroactive immunity on the underlying acts. The next action is not about what CSAA said. It is about what CSAA did and failed to do, specifically the failure to investigate, the certification that an investigation had been completed when it had not, and the concealment of that failure. None of those acts is communicative. All of them are in the next complaint. Any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection will be evaluated against the authorities and record citations above.

Conduct yourself accordingly.

/s/ Franciscus Dylan Rosario
Franciscus Dylan Rosario
Plaintiff in Pro Per



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EXHIBIT B



URGENTJUSTICEFORFDROSARIO



Fundraising for
Franciscus Dylan Rosario



Franciscus Dylan Rosario
San Francisco, CA

\$555 of \$25,000 goal



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Justice for Rosario: A Husband, Father, and Grandfather Fighting for His Life Against a Corrupt System

On **February 4, 2021**, a tragedy unfolded on the streets of San Francisco. **Franciscus Dylan Rosario—a loving husband, devoted father, caring grandfather, and a determined startup founder—was struck down in a brutal hit-and-run** while simply crossing the street as a pedestrian.

The driver? **Subhi Abdelhalim, the owner of Sonoma Liquor—a man with ties to the illicit fentanyl trade that has devastated the city.** After hitting Rosario with his van, **Abdelhalim fled the scene, leaving him broken and bleeding on the pavement.** He only returned **to try and bribe Rosario—while he lay dying.**

Rosario barely survived, suffering **a traumatic brain injury, fractured ribs, and spinal damage.** But the nightmare didn't end there.

The Cover-Up

Despite a **911 call recording where Abdelhalim confessed**, despite an **eyewitness telling police what they saw**, and despite **physical evidence proving the hit-and-run**, the San Francisco Police Department **failed Rosario.** They buried evidence. They ignored witnesses. They let a guilty man walk free.

Now, Rosario faces **a billion-dollar insurance giant, AAA (CSAA), and a corrupt legal system that refuses to hold Abdelhalim accountable.** Instead of justice, **he has been met with lies, suppression of evidence, and a rigged system protecting the wealthy and powerful.**

Why Your Help Matters

Rosario isn't just fighting for himself—he's **fighting for every pedestrian, every family, and every person who has been silenced by corporate greed and legal corruption.**

His fight is a fight for:

- **The truth**—bringing to light the corruption and negligence that let a hit-and-run driver walk free.
- **Justice**—holding AAA and Abdelhalim accountable for their crimes.
- **Survival**—paying for critical medical care, legal fees, and the support his family desperately needs.

This Isn't Just One Man's Fight—It's All of Ours.

Rosario is standing up to a **system that protects criminals while punishing victims.** But he **can't do it alone.**

We are calling on **you—on good people everywhere—to stand with Rosario.** To show that **money and power do not outweigh justice.**

Donate Now to Help Rosario Fight Back.

Every dollar helps. Every share spreads the word. Every voice adds pressure to a system that would rather stay silent.

Justice should not be reserved for the rich. Stand with Rosario today.

 **Donate Today and Stand for Justice!**

For more details, case documents, and audio evidence, visit: [CSAA / AAA / SONOMA LIQUOR HIT & RUN](#)

#JusticeForRosario #HoldAAAAccountable #RemoveAbdelhalim #SupportRosarioNow



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\$250 • [Top donation](#)



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Fundraiser Comments (1)



Anonymous donated \$5

Hit-and-run by a Local Liquor store dealers on 5th and Jesse, he deserves what the people of San Francisco will deliver him in court. Justice reigns and these characters and their counsel will face the music in court.

Mar 5, 2025

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Organizer



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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On August 19, 2026, I served the following document: **DECLARATION OF TYLER J.**
7 **O'CONNELL IN SUPPORT OF DEFENDANT CSAA INSURANCE EXCHANGE'S**
8 **REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO DECLARE**
9 **PLAINTIFF A VEXATIOUS LITIGANT**

10	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).
14	X

15 Addressed as follows:

16 **PLAINTIFF, IN PRO PER**

17 Franciscus Dylan Rosario
18 7624 Melody Drive
19 Rohnert Park, CA 94928
20 soltrinox@gmail.com

21 I declare under penalty of perjury under the laws of the State of California that the foregoing
22 is true and correct. Executed on Sacramento, California on August 19, 2026

23 **Monique Schubert**
24 Monique Schubert